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3

Social Rights in the Digital Age

I. What We Talk About When We Talk About 'Platform Work' (And Why Do We Talk About it So Much?)

At first glance, both algorithmic bosses and the advent of 'pseudo artificial intelligence' may seem to be isolated cases.[1] However, if we look at a part of the labour market where these technology-enabled practices are already working overtime, we should examine platform work,[2] an employment form which has galvanised public interest and inspired heated debates.

The frenzied attention so far devoted to the gig-economy and its social implications is justified by the fact that workers mediated and managed by digital labour platforms experience at first hand the most clear contradictions of this fast-growing sector. The most extreme inventions tested in this arena are indicators of a much broader change sweeping across our economies. Importantly, the platforms' business model should be seen as an ongoing experiment. The many critical aspects of this form of employment such as automated profiling, algorithmic management, opaque evaluation, piecework micropayments or bogus self-employment can easily be applied to other contexts, defining a dominant organisational paradigm.[3] This is already happening in regard to PedidosYa's riders, Uber drivers, Fiverr freelancers, GoPillar architects, software developers on Upwork, Helpling domestic workers and TaskRabbit hodmen, who are the linchpins of a new task-based corporate organisation, made up of micro-chores and mini-rewards.[4] The most recurrent model is based on the fragmentation of jobs into small, sporadic assignments, which can be distributed to legions of arms-length workers who are constantly available, often in excessive numbers and always temporary. At the other end of the scale, high levels of authority are coupled with light employer responsibilities through a variety of legal stratagems.

In its original design, the system does not feature any workers' entitlements, such as overtime, sickness payments, paid leave, compensation for wrongful termination, severance payments and statutory (or collectively negotiated) minimum wages. Workers also face legal and practical obstacles in exercising fundamental rights, such as freedom of association, collective bargaining or protection against discrimination. On top of their ambiguous employment status, workers have to deal with lack of transparency in their responsibilities regarding tax and social security.[5]

The neverending discussion on this matter has given rise to kneejerk reactions, which overlook the deep differences existing between the sub-segments of the platform workforce and minimise the extent of this paradigm shift. This superficiality can be traced back to the tendency to pre-emptively adhere to long-held beliefs, be they an *a priori* opposition to technology, a blind faith in innovation, whataboutism, and business-friendly paternalism, always keen on turning a blind eye when a handful of powerful companies exert enough pressure.[6]

The strength of this phenomenon undoubtedly lies in its form: diverse and variable, while at the same time paradigmatic. Reflecting on the side effects of this type of work allows us to describe the negative effects of tech on labour, inspiring intense interest from academia, policymakers, social partners and the public. It is difficult to assess with certainty why this topic has rapidly become so central to the socioeconomic agenda. There are several elements that have ensured its high prominence. First of all, the emergence of a visible and recognisable workforce (partly because of the fluorescent clothes they wear), mostly consisting of young people and migrants, and the powerful claims they raised before management, and also for the 'newsworthiness' of their initiatives.

Secondly, platform work is solidly grounded on a persistent process of precarisation, fragmentation and casualisation of work relations. This is yet another stage in the race for outsourcing, restructuring and downsizing that has been unfolding for decades. We have been emphasising that the forms of work that are lumped together under the expression 'gig-economy' share many characteristics with temporary work and bogus self-employment.[7] Many workers in various sectors face the ominous consequences of the inefficiency of labour standards resulting from deliberate attempts to evade employment legislation with the aim of cost-cutting. Although platforms cannot be blamed for having disintegrated the welfare state, their contributory role cannot be denied.

For some years, city streets have been crowded with delivery couriers equipped with voluminous coloured backpacks riding around on bicycles or, more rarely, on mopeds and in cars.[8] Simultaneously, smartphones were packed with new apps designed for a wide range of services: not only for ordering food, groceries and booze deliveries, minor maintenance work, small household errands, but also the possibility of 'renting' cooks and bartenders at home, babysitters, translators, proof readers, graphic designers and all sorts of consultants and freelancers. While the first promotional campaigns were launched in Europe – in newspapers, with leaflets in areas most populated with young consumers, thanks to multiple discount codes and with dozens of riders dressed in flashy colours sent around towns just to promote new brands – in the US the first disputes over the classification of gig workers had already reached their final stage. Although most of them were closed through arbitration and out-of-court settlements whose content is often bound by secrecy, the preliminary court documents speak for themselves. Just to name two of the most striking cases, Californian judges Chen and Chhabria dissected the business model of two urban transportation giants, Uber and its competitor

Lyft, disproving that they were simply intermediaries not involved in transport activities.[9]

Turning now to the magnitude of this phenomenon, the most reliable estimates suggest that employment in platform work accounts for around 1 per cent to 3 per cent of total employment.[10] Approximately 1.5 per cent of the working-age population (16–74 years) state that platform work is their main occupation;[11] some researchers estimate that 11 per cent of adults have earned income from platform work at some point in time (over 28 million people's activities in the EU are mediated by platforms).[12] Many studies also show that, for a large portion of workers, these activities represent their main source of income at a time of economic malaise, as revealed by a survey of workers using two of the main operators.[13] The market size in the EU has grown almost fivefold from an estimated EUR 3 billion in 2016 to about EUR 14 billion in 2020.[14]

These figures are neither astronomical nor microscopic, but they show a constant growth – they have increased more than six times compared to 2017 figures. According to the International Labour Organization, the number of taxi and delivery platforms has soared 10-fold worldwide in the last 10 years.[15] However, it is necessary to briefly discuss the 'elephant in the data room', namely the issues of methodology and replicability. Any reliable mapping of platform work is a rather complex matter, partly due to the high turnover of staff, but above all due to lack of reporting and transparency. All this sounds quite paradoxical. In the midst of an abundance of information, company numbers regarding platform workers remain taboo. On the contrary, with the exception of a handful of surveys conducted by international institutions, the few quantitative studies that exist are those that have benefited from an endowment of data by the platforms themselves.

It is hard to disagree with those who complain that the results of these studies often end up corroborating the message of their promotors. Several major issues remain unsolved, as researchers Janine Berg and Hannah Johnston pointed out regarding a very popular paper brandished by Uber to persuade policymakers.[16] First, the fact that the data are not shared by the platforms that own them, nor by the researchers who handle them, makes any verification or replication of information impossible, diminishing the scientific nature of the contributions. Secondly, some of the publications that use first-hand information see the participation, sometimes even as co-authors, of employees of the same companies; more commonly, these papers are the result of consultancy or are directly sponsored by the companies surveyed. A touch of scepticism towards these studies is required. As economist Luigi Zingales wrote, as long as this fog hangs in the air, Sherlock Holmes' intuitive conclusions are valid: if the dog did not bark, it must be because it knew the thief.[17]

Moreover, the questions in these surveys are often formulated in a leading or biased manner, habitually putting respondents in a position of giving predictable answers. Similarly, in many questionnaires, the options, almost always presented as binary, are deliberately misleading, not to mention the low rate of participation or the fact that there is no doubt the workers involved choose to answer favourably

in order to avert unpleasant consequences or refrain from answering because they think that their opinion will not be taken into account.

For instance, a questionnaire given to Italian food-delivery riders asked: 'would you accept to work for your platform under an employment contract if this meant that: (i) your net income would be reduced; (ii) you would answer to a boss who tells you how, where, how much and when to work?'. A scene in Roberto Benigni's *Life is Beautiful* comes to mind immediately. It is late at night in a restaurant and the kitchen is closed, but an important customer arrives, one who cannot be sent away. The sole remaining food is a salmon dish, left uneaten by another client. The customer asks for something light and, to steer him towards the only available option Benigni starts proposing: 'A nice heavy steak, lamb, kidneys, some greasy breaded liver … Otherwise a nice fatty turbot, or eel stuffed with fatty sausage and greased with Grand Marnier …. Or some lean salmon!' – 'The salmon, thank you!' is the answer. And no contract of employment, thanks all the same.

Unfortunately, the difficulty of mapping the breadth and dynamics of this sector makes any legislative intervention regarding platform workers a gamble, all the more justified by opposing societal pressures than by a lucid and neutral analysis of the phenomenon. As useful as they may be, surveys are often incomplete: there is no watertight system of statistics to map platform workers. Moreover, the relative novelty of this mapping means that even platform workers find it difficult to identify themselves as part of the sector.[18] Many workers, especially in care, logistics, or catering services, are in fact engaged in the same activities as they were before the advent of apps; others still do not perceive themselves as workers at all – which leads them not to tick that box in surveys. Furthermore, a number of these workers have another main occupation and thus appear in the statistics, but under a different label. Finally, the same questions never cover all the subtleties of contractual formulas (that workers often ignore), let alone social security or tax aspects.

While no agreed-upon definition exists, the term 'platform work' has the merit of unifying very different activities, focusing on the channel through which they are exchanged, organised and remunerated. At the same time, it must be acknowledged that this label covers various types of economic activities that have very different social implications, even if they share a significant number of characteristics. In short, as scholars Koen Frenken and Juliet Schor commented, the umbrella definition has become a very large 'tent'. Referring to platform work as a large, powerful and indivisible phenomenon would therefore be inaccurate and deceptive;[19] a number of variables need to be considered, and this variation exceeds similarities.[20]

To cut to the chase, and leave behind the pretence of producing a definition on which everyone agrees, we borrow the formula adopted by Eurofound, the European Union agency whose objective is promoting the improvement of living and working conditions.[21] An early report on which we collaborated identifies 'platform work' as one of the nine new non-standard forms of work that have emerged in Europe since the early years of the new millennium.[22] 'Platform work

is a form of employment that uses an online platform to enable organisations or individuals [workers] to access other organisations or individuals [clients] to solve problems or to provide services in exchange for payment.' It follows that, from a labour law standpoint, the most problematic and significant digital platforms are those that exchange temporary work activities and coordinate such an exchange between the worker and the client, and where online and offline activities are distributed through either open calls or individual task assignment. Three chief groups of economic actors are involved: (i) workers or 'service providers' on a casual (amateur or professional) basis; (ii) customers (also called users or 'requesters', these may be individuals, households or businesses); and (iii) businesses that use software to match the demand and supply of work and services and to organise their performance.[23]

The consensus is to classify platform work into two main categories, activities performed remotely and those performed on location. The two categories have been referred to as 'crowdwork' and 'work on demand via app', respectively.[24] They are both based on mobilising an unstable and dispersed workforce, the former being mainly based on task offers addressed to a large audience of workers potentially connected from all over the world, the latter relying on people available within a few kilometres. They differ in the place of performance. Much more attention has been deservedly paid to on-location work, even though crowdwork features risks that should not be underestimated.[25]

The common denominator is a strained version of work, whereby social protection is renounced in exchange for peanuts, to the benefit of digital giants wanting fast and cheap results. They invade a sector and undercut fees artificially, subsidised by venture capital in a money-squandering attempt to dominate the market in the longer run. This is all done under the strange assumption that innovation is only genuine if it asks for forgiveness, not permission.

II. 'What is Mine is Yours'. Doublespeak and the Mythology of Sharing

In the beginning was the drill. In 2014 or so, the image of this tool stood out boldly in every presentation on the latest inventions that – according to their supporters – were soon to revolutionise our lifestyles, rewrite the rules of the market, and even (brace yourselves) put capitalism out of business. Once upon a time, therefore, it was all about the sharing economy.

The message conveyed through this metaphor was quite simple and straightforward. 'You just need a hole in the wall, or at most to assemble a bunch of drawers, you do not need a drill. What's the point of owning your own drill if you're going to be using it for an average of six to twenty minutes?' At its world debut, the religion of the 'sharing economy' built around the sharing of resources relied on this suggestive parable to champion the enlightenment of membership over the

dark ages of ownership. The first commandment sounded simple: 'What is mine is yours'. Coveting other people's possessions was not only allowed, but encouraged. Renting would guarantee the salvation, if not of souls, at least of wallets. The dogma dictated the sharing of unutilised or underused resources. A principle that is acceptable when it comes to exploiting the use of carpentry devices otherwise destined to rot in a basement, but rather awkward when the paradigm of the drill is applied to the global workforce.[26]

In spite of the absurdity of this idea, the gospel of 'sharing' spread, on the viral wave of a handful of messianic videos in perfect TED talk style.[27] The worship found its preachers in storytellers and managers co-opted by the platform companies that were colonising urban areas all over the world. The app for finding a cheap room in Paris, the one for getting a lift to the airport, the one for getting sushi delivered instantly to your home on a rainy Sunday, the one for booking a maths tutoring session, the one for getting someone to queue up at the drugstore for you. Many believed in them,[28] comforted by the illusion of entering an Eden of low-cost privileges, and enticed by the opportunity to operate as small-scale suppliers (of beds, rides, tools, time, or talents).

To give an account of the collaborative ethos, some ventured into discussions about the collapse of trust in public institutions, a failure that would be remedied by mutualism among strangers, facilitated by a few small tricks cleverly devised by the platforms – first and foremost consumer-sourced reviews. These discussions partially reflected genuine changes in the tastes and attitudes of the new consumer generation. Subsequent studies, freed from the near-evangelical enthusiasm of the early days, have identified the aftermath of the 2008 financial crisis as one of the factors behind the success of the naïve, and sometimes disingenuous, rhetoric of peer-to-peer exchange. On the one hand, even affording a few minimal luxuries had suddenly become impossible for many, especially millennials, who were grappling with hectic professional hours and frustrated by the difficulty of balancing personal budgets; on the other hand, the idea of earning pocket money to help round out their meagre salaries seemed like a godsend in the absence of more stable alternatives. In reality, what passed for salvation would soon turn out to be penance.[29]

After a decade of smoke and mirrors, our gently mocking tone is motivated by the need to warn against scams.[30] Now that the miracles promised have been universally acknowledged as hype, to reveal the truth we will try to condense years of overexcitement. Before focusing on the legal aspects, we consider the evolution of the labels with which the phenomenon has been christened, to map how the attitudes of jurists, sociologists, economists and decision-makers have changed.

Given the volatility of this part of the economy, several institutions have tried to sketch out their own taxonomy and entire book chapters have been spent distinguishing between synonyms and 'false friends'. Until recently, it was very difficult to find one's way through this maze. Over time, as we made clear in the introductory paragraph, the neutral expression 'platform work' has become the most accepted. However, it is worth exploring an anthology of the many claims in defence of the

platforms, a series of clichés that are still quoted today when it is time to face up to responsibilities. The catalogue is rich and includes arguments on both ends of the scale, depending on the circumstances. However, it should not be overlooked that definitions, and the ideas they encapsulate, influence general perception and social impact as much as regulatory interventions do. Words can carry considerable weight.

A vast and collective debunking operation became necessary to counter the prevailing false narrative trap. Simultaneously, although on a case-by-case basis, courts across the world have taken up the task of disproving certain misrepresentations. Following a sort of chronological order, the first myth to dispel is that we are dealing with some new and amateurish type of relationship. Someone simply picks up and deliver parcels from one end of the city to the other, another person transports people in her car, others perform repetitive tasks on their computer, someone else completes remote consultancies. These tasks are all performed for remuneration, however small. It is only work, not recognising it as such is ridiculous. Among other things, the lack of recognition of these activities as work is a repetition of what has happened in the past in sectors such as temporary employment agencies, and playing down the value of women in part-time work.[31]

Jeremias Adams-Prassl at the University of Oxford rightly talks about a 'doublespeak' of gig companies.[32] Platform work has been disguised as 'favour', 'task', 'partnership', 'help' or even 'game'; workers have been referred to by dozens of labels verging on the farcical, from 'ninjas' to 'peers', from 'gorillas' to 'rabbits', from 'partners' to 'friends'.[33] There have been attempts to distinguish genuinely altruistic mutual practices from the lexical expropriation that has taken place for the benefit of staffing business giants: but it was too late. The internal vocabulary prepared by the apps, unveiled by journalistic investigations and documents leaked by whistleblowers, aimed at creating a parallel reality where 'independent suppliers' work 'with' the platform (not 'for' it!), they 'onboard' after signing a 'supplier agreement' (don't say 'hire'), they offer their 'availability' (they are not assigned a shift). They wear 'branded clothing' (not a uniform) and are part of a 'community'. They 'log in' at the beginning of their shift in a 'chosen area', receive a 'fee' (not a wage) after invoices are processed and, if service delivery standards are not met (do not say 'performance review'), their account is 'terminated' (which is basically a code word for 'they are dismissed').[34]

Next came the formulas 'on-demand economy' and 'just-in-time workforce'. Seemingly drab, they both emphasise instant performance and the fragmented nature of a workforce, borrowing the terminology of assembly line work in a lean production model. Also in this case, the emphasis is on the speed of the service, a 'hit and run' model aimed at catering to the client's insatiable appetite for convenience. 'On demand', 'on call', 'on tap' are insincere euphemisms that conceal an underlying hypocrisy,[35] according to which platforms operate in a universe where exceptions are the norm. Imagine if waiters in a café, in the name of an 'on demand' format, were only paid every time they pick up an order and move from table to bar to pull a pint, and not for all the hours they put on their aprons

and make themselves available to customers. It would be absurd! It does, however, show the excessive tolerance with which a shrewd exercise of reality warping has been treated.

Any other business in traditional industries would not have survived such hypocrisy. And yet, years after the launch of these 'start-ups', we are still being forced to respond to the assertion that in low value-added sectors, complying with the rules would mean depriving many vulnerable workers of their living or forcing them into undeclared work. Enforcing current regulations would dampen the creativity of entrepreneurs who are allergic to formalities. Let's instead keep this 'formalised informal economy' and be happy with it. How this adds to an already too widespread culture of commodifying and depreciating work is evident. Thanks to unyielding 'regulatory entrepreneurship',[36] a modest version of innovation has proliferated, one according to which existing rules should be disregarded because they are the legacy of a black-and-white world, or shadow-economies and illegal alternatives are used as a yardstick for comparing the validity of debatable business models.

It is appropriate to state for the record the remark of a manager of a food-delivery platform, according to whom 'Foodora is not a job to make ends meet, but an opportunity for those who love to ride bikes, earning a small salary'.[37] In short, it is claimed it is a 'gift' for bike lovers, or the opportunity to make a profit from the very popular obsession of racing round the cobblestones of city centres on rainy nights. A wellness exercise for free.

Even today, managers continue to play the 'leisure activity' card, even in parliamentary hearings, without anyone raising an eyebrow. From a legal point of view, though, it does not matter whether people do a job to survive, to earn extra money or for pleasure. No one would ever argue that someone who inherited a fortune and still works 'for passion', even if they could afford to be idle, is not entitled to employment protection – its coverage does not depend on the recipient's motivation for work. The reasons for engaging in a certain activity are completely irrelevant when it comes to classifying work arrangements and identifying which rules apply to them. Nor can the casual nature of certain activities lead us to consider them as good neighbourly relations.

This *nouvelle vague* also includes the term 'gig economy', borrowed from the world of live performances in the entertainment sector. It conveys the idea of a casual arrangement, whereby a musician is recruited to perform a show in exchange for a small reward (free drinks or, at best, a percentage of the tickets sold). If the audience is cheerful, the performer gets another date, otherwise thank you and goodbye. The term perpetuates a flippant interpretation, which has contributed to a trivialisation of the phenomenon. Why bother regulating something that is by nature short-lived? This trite argument ends up justifying avoiding existing rules and, in an unending vicious circle, increases the number of those who are placed in a legal no man's land. What is more, the busted mythology of 'odd jobs' clashes with an argument often used by platforms' advocates: self-entrepreneurship. One the one hand, there is the image of an amateur activity. On the other hand,

strengthened by cycling under inclement weather conditions, an ingenious business idea will germinate in the souls of platform workers, and will soon be ready to be listed on the stock exchange. The (mostly phony) hagiographies of CEOs who started out delivering pizzas as scrappy, penniless students are also part of this narrative of 'entrepreneurial renaissance'.[38]

Emphasising grassroots self-entrepreneurship is a common rhetorical trick of many players. It sends three main messages. The first, whereby the app acts as a mere point of contact between customers and third-party suppliers, was already refuted by the Court of Justice of the European Union. The second purports to justify the adoption of self-employment arrangements before the courts – not exactly a watertight strategy, given how many platform workers have been reclassified as employees. The third is even more surreal, according to which any different legal classification, including employment status, would make a stricter control on the workforce mandatory, with the result of leaving no room for flexibility.[39] None of these arguments makes sense.

Simply put, nothing could be further from the notion of entrepreneurship than services of a predominantly personal nature, often rendered under exclusivity clauses (with the practical impossibility of being replaced), coupled with constant tracking through GPS, the need to rent uniforms and company equipment out of one's own pocket, while putting up with inconveniences caused by malfunctioning technology.[40] People who are obliged to respect deadlines, shifts and instructions imposed by others to avoid being excluded from the platform are hardly their own boss.[41] Advertising campaigns started glorifying professional martyrdom, presented as an alternative to the boredom of working for an overdemanding boss. An outrageous ad for Fiverr hit the headlines, capturing the spirit of the times. 'You eat a coffee for lunch', it proclaimed. 'You follow through on your follow through. Sleep deprivation is your drug of choice. You might be a doer.'[42] Sure!

In the words of the Court of Justice of the European Union, an economic unit is not an undertaking if it is unable to determine independently its own conduct on the market,[43] but is entirely dependent on its principal, for instance because it must passively accept the pricing policies decided by the platforms. Similarly, a service that does not have direct access to markets and a client base does not qualify as genuine self-employment. The judges of the London Employment Tribunal branded as 'faintly ridiculous' the notion that 'Uber in London is a mosaic of 30,000 small businesses linked by a common "platform"'.[44] If this were the case, each client would be free to negotiate rates and fees directly with the workers (as is the case whenever you use a freelancer, be it for a consultancy or a leaky tap). After all, when you ask who is at your door the answer you get is: 'Glovo', not 'Tony, the rider'.

Likewise, as we discuss below, it is blatantly false that adopting a model based on regular employment would negate any margin of flexibility. Moreover – as we learned during the lockdowns, when we almost started cheering platforms, instead of healthcare workers – the platform business would not be viable without

the contribution of the workers who are central to the business model: the labour factor is much more important than machinery and capitals.[45]

Now that the initial buzz is over, and extensive research has revealed the harsh reality, the propaganda is stalling. Claiming that food delivery drivers are all university students eager to earn a quick buck is at odds with the results of surveys (and with what anyone can see in plain sight). Platform workers may also sometimes be highly educated, but their average age is going up (in 2018 it was 33.9 years), and the bulk of the workforce is engaged for dozens of hours a week (more than 60).[46] As can be seen on the streets or on suburban trains (especially at the end of the shift), and as shown by judicial investigations, some delivery platforms contracted legions of migrant workers through a tortuous pattern of elusive practices. Unfamiliarity with the local language, combined with the fear linked to migrant statuses and the need to scrape together resources to avoid starvation, leads to abuses, silence and subjugation – sweatshops run through smartphones. Accidents are not reported for fear of retaliation or exposure, and complaints are nipped in the bud because removing troublemakers is too easy.

Meanwhile, the health crisis and the resulting state of exception have provided a golden opportunity for many platforms.[47] On the one hand, there were draconian measures imposing social distancing on millions of citizens, on the other, the forced shutdown of many businesses was mitigated by the possibility of operating as delivery-only concepts. In between, platforms were able to seize this unexpected state of affairs to consolidate their position as critical societal infrastructures, by controlling and monetising a large volume of critical data flows.

They could take advantage of this situation to stimulate the consumers' appetite,[48] subsidise the business with artificially low prices[49] and generous incentives and keep investors off their backs, forcing the latter to accept balance sheets in the red by forking out huge recapitalisations, in the hopes of wiping out brick-and-mortar rivals. We should not underestimate how much data the platforms are able to collect with a single call and then sell or use: such as what time we eat, what we eat, where drivers take us and when, how much we are willing to pay etc. Not to mention how easy it is to cash in on the data collected – platforms often sell traffic data back to public transport authorities or use it to develop other projects, such as self-driving cars. It is this huge amount of capital that makes companies that often burn huge piles of money attractive to venture capitalists.

It would then be easy to raise prices, lower costs and reap the benefits of this scheme by elbowing out competitors.[50] Only then would we see plainly that that the new clothes of the digital emperors, which had made them invisible to the eyes of the regulator, are the same ones once worn by the most aggressive protagonists of the Gilded Age. Some CEOs have openly admitted that the long-term goal is to become an 'operating system for everyone's entire lives',[51] in order to set up monopolies or, at most, an oligopoly. This may be the only way to make a struggling entrepreneurial adventure sustainable. There would then be little point in the crocodile tears of a society that would realise it had been flattered and deceived by a handful of anti-competitive discount codes.

This is a serious issue, and marketing charades certainly do not help. It's why it is imperative to clear the field of all semantic traps. To do so, let us begin once and for all to tell it like it is. The solution to the problem starts here.

A. Workers on Tap and Untapped Appetites

This section contains a review of the ways in which work is organised by platforms. For the sake of simplicity, we outline the features of an almost prototypic but nevertheless realistic pilot, and account for divergences from it. There is a great deal of available information. While in the past it was limited to the legal notes published on the companies' websites, over time detailed studies, court rulings, media investigations and revelations from workers have complemented, and sometimes debunked, it.

Each platform is a case in point, but the vast bulk of them engage with providers who are almost invariably classified as self-employed workers (including schemes of 'dependent self-employment', where they exist, which we will analyse below). While avoiding the obligations and costs associated with direct employment, many platforms, as we will see, still wield some degree of managerial prerogatives, albeit in a sophisticated and misleading manner.

Notably, labour regulation around the world has developed effective 'antibodies' to cure the inconsistency between contractual labels and reality. Simply put, a work arrangement cannot be given a legal classification that contradicts the actual nature of the work performance.[52] If this happens, and the parties of a self-employment arrangement behave as if an employment relationship was in place, with the principal exerting control on the work performance and the worker being dependent on that hiring entity, courts or labour authorities can rectify this situation by reclassifying the work arrangement as an employment contract or relationship. This is also known as 'primacy of fact'. In its various and multifaceted form, it is a widely established and applied principle or practice in a vast number of countries and legal systems around the world. This allows disregarding contractual (mis)classifications by giving priority to substance over form.

It is also recognised by a specialised instrument of the International Labour Organization, the Employment Relationship Recommendation, 2006 (No. 198), which stipulates: 'the determination of the existence of [an employment relationship] should be guided primarily by the facts relating to the performance of work and the remuneration of the worker, notwithstanding how the relationship is characterised in any contrary arrangement, contractual or otherwise, that may have been agreed between the parties'.[53] The newly proposed EU Directive on platform work adopts the very same language, also mentioning the need to 'tak[e] into account the use of algorithms in the organisation of platform work, irrespective of how the relationship is classified' by the parties.[54] Boilerplate clauses which classify workers as independent contractors, but which are omitted

in practice or do not correspond to the reality of the work performed cannot deprive workers of employment status and its accompanying protections.

There is, therefore, a broad international consensus on the primacy of fact principle both in general and with regard to platform work, as shown in a recent study of the University of Leuven commissioned by the ILO.[55] The study mapped litigation and legislation on the employment status of platform workers around the world and found that, in general, courts were often ready to reclassify platform workers as employees when platforms behaved as ordinary employers, with notable exceptions in Russia and China and, after the ballot on Proposition 22, also in California. Consequently, our study is based on factual circumstances, notwithstanding any contrary arrangement agreed upon by the parties.

For the sake of simplicity, we begin with the registration and recruitment phase. All a worker needs to join a platform is a fast internet connection. There are no particular barriers to entry, mainly because the model needs a large pool of workers available around the clock to meet the volume of demand while keeping fees low. When candidates first sign up on the website of one of the many platforms, they find a mandatory route. Generally, a first step is dedicated to basic personal data, including a profile picture, as well as tax and financial details. A second page hosts a standardised form contract. After this stage, one can move on to agree on the unilaterally determined boilerplate terms and conditions.[56] The content of these clauses is deliberately ambiguous, barely comprehensible and, in most cases, it goes the extra mile to deny the existence of an employment relationship through a series of verbal acrobatics. The adhesion contracts, which are not static over time, often include dubiously enforceable waivers and arbitration clauses aimed at discouraging or preventing workers from claiming their rights in court.

In the fields of transport, delivery and handyman work, the recruitment and hiring phases may be followed by training sessions, either in person or via online tutorials. Rules of conduct are aggressively shared, they encompass cleanliness of vehicles, specific music genre recommendations, professional clothing, gadgets and assistance for customers.

Usually, it is the automated management system that matches workers to clients, either on the basis of specific requests (it is up to the client to establish the criteria to which the worker's profile must respond) or on the basis of geographical proximity recorded at regular intervals.[57] A bidding mechanism is also possible (but beware: again, it is the platform or the final user that set the key conditions). Many platforms – especially those exchanging creative activities – include competitive contest-based processes to win a gig, allowing room for self-promotion and, in rare cases, even direct contact with the clients.

Once recruited, workers are encouraged, and prompted, to accept all requests, on pain of being downgraded in the internal ranking. To that end, the apps themselves incorporate rather intrusive notification mechanisms that leave workers with no choice but to switch off the device permanently, exposing themselves to recalls and penalties of all kinds, or to be swamped with notifications. The couriers involved in door-to-door delivery services in last-mile logistics are in contact with

the company through messaging applications, or through group chats. Workers are called in on the basis of anticipated deliveries, without much notice, and divided into shifts, and sometimes into zones of competence. They are allowed to cancel a shift within certain limits, late cancellations can lead to them being labelled as unreliable by the automated reputational system and excluded from new job offers. Compliance with data protection regulation is largely illusory. The platforms use sophisticated monitoring devices such as geo-localisation via GPS and precise data on online accesses of workers and customers as well as on the number of restaurants active at a given time. Yet, the address of the consumer or the destination of the trip are rarely revealed before acceptance – which can lead to long routes being taken.[58]

During the pandemic, many platform workers had no choice but to keep working to avoid financial hardship and not to see their ratings cancelled, while exposing themselves directly to the risk of infection and to being vectors of transmission within their families and communities.[59] What is more, with the aim of minimising misclassification claims, some platforms waited weeks before distributing personal protective equipment – lest this distribution be interpreted as something only employers would do – with workers being forced to pay for masks, hand sanitiser gel and gloves out of their own pockets.[60] In several countries, it took a court order to recognise the riders' right to basic safety equipment, regardless of their contractual classification.[61] The emergency has exposed people to hazard, heightened by the lack of information on the health status of both their fellow workers and their clients (to reassure customers 'contactless deliveries' were introduced). In addition, the long lockdowns were formidable opportunities for platforms to build customer loyalty. With restaurants and supermarkets restricted to home delivery, only a semi affluent elite, grappling with overloaded systems and in a constant battle with their neighbours to grab the few available time slots, was able to afford the privilege of quick and no-touch delivery.[62]

In sectors such as cleaning or, more generally, domestic work, many apps have specialised in booking household jobs and offering complementary services, from calculating rates to managing invoices, or even selling cleaning products. To avoid the risk that workers and clients build a personal bond that could bypass them, several companies impose non-circumvention clauses and penalties if anyone sidesteps the platform to negotiate deals. Arguably, given the nature of these services, the scope for monitoring workers in this context ought to be greatly reduced, because the surveillance is one-sided. Very few mechanisms are put in place to avoid opportunistic behaviour from household clients, particularly when it comes to ratings.

The profiling of workers and clients is now one of the core businesses for platforms' operators.[63] Internal reputation has a major influence on the remuneration of workers, particularly where exclusivity clauses channelling work through single platforms are present. The exercise of control and disciplinary powers is facilitated by non-transparent internal rating systems, which collect and factor into data the number of orders accepted and the proportion of deliveries completed or

rejected upon receiving an order, availability rates in designated areas during the most inconvenient shifts, and the overall appreciation of customers. If workers fall behind, they are subject to disciplinary action, without any guarantee.[64] Recently, it has been found that the use of outsourcing and substitution chains could make the identification of the worker less and less reliable. But the platform-prescribed cure may be much worse than the disease. To prevent drivers from using phony documents and passengers from being at the mercy of 'unverified accounts', Uber is experimenting with facial recognition mechanisms, paving the way to intolerable mass surveillance practices and discriminatory results.

In 2019, a major trade union in Italy brought a legal action against Deliveroo. A year later, the court's decision was the first in the world that ruled against discriminatory algorithms at work. The order also uncovered the functioning of the model. Riders were ranked based on how reliable they were and how long they worked. The combination of these metrics determined their internal rankings, and the likelihood of them being called upon. Workers with the highest ratings were among the first to apply for jobs, those with the most orders, and had the opportunity to turn down jobs that were inconvenient. Some riders who returned from a period of absence were automatically downgraded and forced to start from scratch, even when they did not show up to work because they were on strike (or because they were sick, had a disability or had to assist a disabled person or a sick minor). This made the algorithm operate in an indirectly discriminatory way according to the court, as the system did not differentiate between people missing a shift for constitutionally protected reasons and other absent workers,[65] putting workers with a protected characteristic at a particular disadvantage.

Platforms have extensively argued that their workers are self-employed because they can 'switch off' the software or not log on to the app, thus being unavailable to take calls. However, many commentators and courts, including the Spanish and the French Supreme Courts,[66] have objected that making oneself available to work contributes, along with other factors, to defining the rating that by its very nature is very volatile and heavily depends on the customers' often arbitrary reviews, making personal scores highly unstable. This model results in a stressful subservience to both the platform and to the users, who are complimented with freebies and flattery.

Even though word of mouth has made it possible to develop a sort of code of conduct that satisfies the 'black box' (to give just a few examples: food couriers know that in order to be able to choose the best shifts they must have worked a certain number of hours, while drivers hand out water bottles and sweets as incentives for positive reviews from the client), many rules remain unclear. Over time, workers have done their best to be present and active on several platforms simultaneously to avoid downtime; but this trick is not always effective, and there is a great risk of being caught and sanctioned.[67] Additionally, the possibility of offering services to multiple third parties at the same time ('multihoming') can be used in court to defeat the claim of being included under the scope of employment protection.

Technology also allows for second-by-second monitoring of the worker's position and speed in performing a given task.[68] In online crowdwork, the client may assign the same task to several workers to check the quality of the performance, compensating only the best performer, or have access to the worker's screen in order to check if they are actually on the job at any given moment. After completion, work that does not meet the customer's expectations can be retained with no payment under a satisfaction clause found in many online freelancing platforms. As well as emphasising the forced compliance of workers, this approach can lead to opportunistic behaviour.[69] It is, after all, a sort of fickle 'lottery' in which the losers have to surrender their intellectual property rights over outputs.[70]

The compensation structure has been made public thanks to the controversy that has followed the cyclical and sudden changes to terms and conditions, which originally provided for an hourly wage while, more recently, remunerate each order with a few euros – it has been said, not without reason, that unoriginal forms of piecework on a 'pay-as-you-go' basis are making a spectacular comeback.[71] Very often hybrid formulas are used: a minimum hourly rate for certain time slots (a model later abandoned), payment per delivery, a few cents per mile travelled as the crow flies, pennies for every minute spent waiting at the restaurant or customer's premises. Increasingly, the payment has been decoupled from the cost of a service paid by the final client, with numerous incentives based on market and surge pricing. In the delivery industry, hybrid models coexist where – despite the attempts to link remuneration to collective agreements in comparable sectors – payment per delivery prevails, pushing workers into the risky practice of working long hours to ensure a decent salary. It is no coincidence that road accidents continue to rise year on year.[72] In summer 2019, a judge in Buenos Aires suspended major food-delivery platforms after a spike in the number of accidents. The *casus belli* was a viral tweet featuring the shameful interaction between an injured driver and a middle manager who, informed of an accident, insisted on asking for reassurance on the status of the order.[73] Aggressions against riders have also been reported in the media.[74]

The costs incurred for uniforms, equipment and vehicles (as well as fines, repairs and new purchases in case of stolen bikes, *ça va sans dire*) are entirely borne by the workers. The companies usually provide them, deducting the cost directly from pay. On average, the platform retains a hefty 25–30 per cent for each transaction. Only recently, many companies have agreed to the request to provide a tip button, but it was later discovered that the money was pocketed and used to pay the fee, providing yet another cost saving that most customers were unaware of.[75]

Platform work is a niche where extreme forms of deregulation by market players are permitted. The results are grim: unstable working hours and low earnings, well below the average wages of comparable industries (retail, logistics, services etc), no sick pay, holidays or overtime, limited room for collective bargaining and business risks passed on to the workers themselves. While creating new opportunities for some groups of workers, platforms impoverish labour markets and trigger downward pressure on prices. Their competitive edge derives from the

ability to selectively disapply labour rules, and from the failure to comply with social security obligations. In practice, this unfair advantage is based on an avoidance formula whose adverse consequences end up being borne by societies at large (competitors, workers but also customers who cannot rely on clear rules on non-discrimination and vehicle safety).

It should be noted that, although for years the abandonment of invasive Ford-Taylorist models was unjustifiably celebrated, today we find ourselves dealing with ramped up versions on steroids. While the boundaries of the classical employment statuses are being abandoned, and the hypotheses that the employment relationship's model has an expansive force or, on the contrary, is experiencing a phase of eclipse are over-debated, some of the most characterising features of that hierarchical model are now widespread in every segment of the labour market, regardless of classifications. Paradoxically, the much-vaunted decoupling of labour measures from the standard employment relationship seems now to be achieved, not on the side of protection, but on the side of obligations and constraints for workers.

Thus, while the employment relationship has been gracefully de-standardised, the work performance is being routinised. At the end of the day, the dynamics of the glittering world of innovation are not too far removed from the ancient models with which nominally autonomous labourers were confronted decades ago.[76] If this is the future, the reaction (according to legend) of Gioachino Rossini to the composition of a fellow composer is still valid: 'I must confess that there is beauty and novelty in your work. Too bad, though, that while the beautiful is not new, the new is not beautiful!'.

B. The Platform Paradigm, Rethinking the Master–Server Dialectic

We often hear that digital companies such as Uber, Amazon and Deliveroo are to be considered as tech-forward organisations, hybrid structures at the crossroads of classical institutional schemes.[77] It is often argued that the predominant Silicon Valley business model even transcends the traditional distinction between undertaking and market, 'make' and 'buy', vertical and horizontal, labour law and contract law.[78] This all too benevolent interpretation has helped to forge various rhetorical weapons through which platforms have presented themselves as mere brokers of connections – 'virtual Yellow Pages' that merely facilitate the matching of labour supply and demand, without interfering with the activities offered. To tell the truth, these same companies have invested quite a bit of energy in playing the role of (neo)intermediaries above the law, sensational 'Ebay for humans'. But are we sure that the 'uberisation' is revolutionising the notion of enterprise as we know it? Drawing insights from law and economics, we engage with the motivations and aims that now inform choices concerning corporate organisation and management of the firm, understood as

a conglomerate of capital and labour – once compact and self-sufficient, now modular and interconnected.

At first glance, it might seem that platforms represent a living contradiction to the paradigm of the vertically integrated enterprise that emerged in the twentieth century and that, in turn, contributed to delivering the socio-economic development of industrialised countries.[79] This rebellious self-representation as rebellious players, accompanied by truly distasteful references to Rosa Parks and Gandhi, has inspired their claim to be operating in a legal vacuum, in a nascent market unconstrained by rules.[80] All these claims have turned out to be devious. For decades, economists and labour lawyers have tried to dissect the reasons why entrepreneurs find it convenient to directly manage ('internalise') the production factors and, consequently, to operate by means of a so-called vertically integrated structure.

Businesses grow by bringing activities within a firm to optimise transaction costs and exercise greater authority over the resources they own.[81] Today, instead, to quote a popular meme, 'Uber, the world's largest taxi company, owns no vehicles. Facebook, the world's most popular media owner, creates no content. Alibaba, the most valuable retailer, has no inventory. And Airbnb, the world's largest accommodation provider, owns no real estate. Something interesting is happening'.[82] Impressive, isn't it?

The classic distinction in business economics between 'make' (to do internally, by means of a hierarchical model) and 'buy' (to acquire from outside on the market, in horizontal and competitive conditions) is still useful today to describe the options on the map, as well as to draw the efficient boundaries of a given economic structure.[83] Of course, this binary option partly neglects more complex arrangements, first of all those established within networks – elastic business relations models of governance within a framework based on mutual preferences and relational contracts.[84] In networks, however, interdependence and integration among actors come into play, often thanks to idiosyncratic investments, which make relationships unbalanced even when they were conceived as being horizontal.[85] Think of the owner of a franchised shop who spent a lot of money to buy furniture, machines and software that they can only use by remaining within the same large chain; the franchisor can easily impose contractual conditions favourable to itself, and alter them when needed.

As early as the end of the 1980s, some scholars were already voicing their concern to propose a revision of classical theories, on the expectation that mass digitisation would reduce coordination costs, shifting the balance of convenience in favour of recourse to the market, or to interconnected value chains.[86] The fragmentation of the production landscape, the new tools for finding resources and the endless extra-legal possibilities of contract administration would have urged businesses to be sophisticated and flexible, able to adapt to changing market needs. This called for an upgrade of the strict make/buy distinction.[87] Regrettably, despite the validity of this insight, little energy has been devoted to investigating the ability of technology to reduce coordination costs even within a vertical structure.

Faced with these arrangements that fundamentally unsettle conventional categories, new questions emerge. Are platforms really the harbingers of a new economic order that rejects the distinction between making and buying and leads straight to the extinction of businesses as we know them? Will open interactions, based on distinctive elements and optimised by intelligent software, triumph, as argued by researchers Van Alstyne, Parker and Choudary in their book *Platform Revolution*?[88] In short: no. Instead of hailing the collapse of old categories to encourage innovation, we should understand the broader picture in which innovative firms are situated.

If we go beyond appearances, it becomes clear that the platforms' real strength lies in the formidable combination of basic AI, user-friendly interfaces, surge pricing and increasingly effective tools such as geo-localisation via GPS. Thus, information can be easily retrieved, taking into account distance, number of requests or even just the remaining battery charge level of the customer's phone. Likewise, the imposition of guidelines, recommendations and instructions – whose observance is easily monitored remotely – constitutes an invisible tool of command and, in cases of a breach, results in the deactivation of the worker's account.

This scenario has all the advantages of vertical models without the associated costs. All the privileges of horizontal contracting in the marketplace, without the associated shortcomings. In a single stroke, transaction costs are minimised. Like integrated enterprises, platforms rely on labour to extract value and adopt a command-and-control approach; like markets, platforms engage, dispatch and connect nominally independent actors; like networks, they combine and synchronise the supply and demand sides of goods or services. Like Cerberus, the mythological three-headed dog, platforms are versatile economic actors that continuously evolve from transaction enablers to participation gatekeepers.[89] The much-advertised idea of having set up a new generation business model, when tested in practice, turns out to be an illusion. The aim of platform companies is to grow at a loss by reaching a critical mass of users and then extracting profits from a dominant position. The result is an apparently 'win-win situation' in which firms control resources without owning them, rapidly adapting to downturns in the market.[90] Downsides for businesses are less evident. Platforms may find it difficult to deal with a segmented, uncommitted and inharmonious workforce, and with supervising isolated workers outside the firm's premises while meeting customers' needs.[91]

From the above analysis, it becomes clear that for online platforms it is much cheaper to orchestrate processes, solicit participants and interact fruitfully with the surrounding ecosystem than deal with owning and hiring.[92] On closer inspection, these centrifugal forces have existed for decades. The novelty lies in the penetration of the immaterial infrastructure that enables smoother exchanges, not to mention the effective collection of data that can bring about even more timely and successful functions. All this occurs at an extremely low cost, since the workers work for the same platform, even though they are classified as self-employed. Thus, platforms organise production inputs without incurring most of the costs

associated with labour and social security protection. The chief costs to bear are, at most, those related to software, patents and a few other resources (investment in advertising, a good press office, a marketing department and strong compliance and lobbying teams).[93] When analysing platform work, therefore, Coase's classic theory of the firm, properly purged of its functionalist excesses, remains a compelling basis for describing the interrelationships between economic actors and justifying their organisational choices even in this era of shift from atoms to bits.[94]

At the end of 2017, however, the Court of Justice of the European Union took a clear stand when called on to rule on the nature of the service offered by the Uber platform following an appeal brought by a professional taxi drivers' association in Barcelona seeking a declaration that the activities of Uber Systems Spain amounted to misleading practices and acts of unfair competition. The platform's determination of many of the terms and conditions of the service (the driver's credential and performance, maximum fares, vehicle status and characteristics and working time) means that it cannot be qualified as a mere digital intermediary.[95] For the Court, in fact, Uber must be classified as 'a service in the field of transport' within the meaning of EU law precisely because of the direct and indirect influence it exerts on 'all relevant aspects' of the underlying service and on non-professional drivers. There is a huge difference between a website that merely compares the rates of a service (as is common for airline flights or insurance policies aggregators, and other mixed services where the electronic component prevails over the physical one) and a company that organises a mobility service in its entirety by operating in the highly regulated market. In short, Uber provides more than an intermediation service.

To put it another way, quoting an American ruling that has become a classic: unlike a technological enterprise, Uber 'does not simply sell software; it sells rides'.[96] It is, therefore, highly questionable that Uber has re-engineered the prototype of the enterprise. This was made clear by the Advocate General who reviewed the case with some extraordinarily clear passages: 'While [the platform's] control is not exercised in the context of a traditional employer-employee relationship, one should not be fooled by appearances. Indirect control such as that exercised by Uber, based on financial incentives and decentralised passenger-led ratings, with a scale effect, makes it possible to manage in a way that is just as – if not more – effective than management based on formal orders given by an employer to his employees and direct control over the carrying out of such orders'.[97]

While platforms operating in the last-mile logistics sector or exchanging back-office tasks have been accused of abandoning employer obligations and avoiding the associated costs, their legacy also rests on the intensification of authority and concentration of power. Platforms want to have it both ways: strong authority mechanisms and liquid obligations.[98] From rebels to mercenaries: with great power comes organised irresponsibility.[99] Therefore, they don't deserve any preferential treatment. Moreover, with the stabilisation of the industry, the use of vertically integrated models is growing. Consider that in the food-delivery sector, many platforms have moved from connecting restaurants and customers to owning and

operating kitchens that prepare food exclusively for delivery – they call them 'dark' kitchens (at the same time, many platforms increasingly rely on 'dark stores' that cater primarily for online shopping 'within minutes').[100] Uber has also moved from transport services to food deliveries, bicycle rental and labour supply.

According to labour law scholar Brishen Rogers, examples from Amazon, Uber, McDonalds and Walmart emphasise the fact that fragmentation and consolidation reflect the same underlying logic.[101] This is not forecasting the future, but rather a question of industrial archaeology: it is the continuation of an eternal process of business disintegration by digital means. David Weil, who served as administrator of the Wage and Hour Division in the US Department of Labour during the Obama and Biden administrations, compiled a number of vignettes of a phenomenon he labelled 'fissured' work.[102] Borrowing from geological studies, Weil illustrated various situations that share one common denominator: the absence of a direct employment contract between the company and the worker, compounded by the ability to closely enforce standards on external suppliers thanks to the low costs of gathering information and digital monitoring. A cleaner hired by an external hotel management company that has a contract for the big hotel chain; cable installers – nominally self-employed business providers – working for years for the same installation company whose logo is on their uniform; a dock porter who unpacks, loads, and ships goods – temporarily staffed to a logistic company serving a large chain of grocery stores, but also (to update Weil's review)[103] riders wearing the backpacks of an app with whom they have at most a nominal freelancing relationship. In all cases there is an anomaly: a lot of control and a dearth of compliance, a perfect legal move to weaken worker rights.[104] While it is true that negotiating with suppliers on the market is undoubtedly more appropriate when it comes to acquiring technical skills that are peripheral to the core business, the acquisition of outside resources is often driven by the willingness to benefit from lower labour costs, given that the bargaining power of external providers is often weaker than that of internal personnel.

While we are busy shedding light on the demeaning working conditions of riders, cleaners and knowledge workers, we should not ignore the fact that the entire labour market runs the risk of facing a similar process of digitisation of management and platformisation, that is the replacement of stable relationships with instant, fragile contracts that are outside the scope of labour protection. This observation should induce us to treat the contractual arrangements typical of the gig-economy as pieces of the whole of non-standard forms of employment – without letting ourselves believe in platform work falling outside this definition.

C. The European Way: Strengthening the Social Dimension Step by Step

In the midst of the organisational gymnastics of these 'hyper weak superpowers', one might wonder how supranational institutions are trying to reinforce their

imagined invincibility. More generally, what is the scope for intervention by governments and regulators?[105]

The usual dilemma applies. Are the rules already in place sufficient, or do we need specific measures to meet the new work-related challenges? This is no small matter. In the European Union, the fluid activism of its institutions, in particular the Commission and the Parliament (we have already reported on the clear position of the Court of Justice), should be noted. Recently, EU institutions have begun to give platform work the attention it deserves, by reassessing the regulatory fitness of all legislative measures aimed at reducing socioeconomic inequalities. Between 2016 and 2017, the 'European Pillar of Social Rights' (EPSR) has been launched to renew the European strategy to protect new forms of work while ensuring a proper functioning of the internal market.[106]

In the last five years, various instruments, including a communication on the collaborative economy, a Directive on 'transparent and predictable' working conditions, several Parliament resolutions and a Council recommendation on access to social protection, have reaffirmed the need to strengthen protection for all forms of work, including those enabled by digital tools.[107] This approach is very cautious, as it is assumed that, as far as possible, the existing legal toolbox should be used to the fullest extent possible to regulate situations that cannot be considered 'above and beyond' existing law.

At the end of 2019, the then newly appointed EU Commission President von der Leyen, in her letter of assignment sent to Labour Commissioner Nicolas Schmit, expressly mandated to 'monitor and promote the implementation of existing rules' and to 'improve working conditions for platform workers'.[108] Around the same time, Vice-President Margrethe Vestager, who was reappointed after a term as Competition Commissioner, challenged big platforms that abuse their data. The Commissioner also hinted that she would work on the issue of collective bargaining for platform workers (see below for more on this subject).

After a long period of neglect, there is growing engagement on the European 'social market economy' front. Although it mainly represents an amalgam of old and new principles, the EPSR, a document somewhere between a manifesto and a legal recommendation in the social field, responds to this logic – setting forth a charter of rights to counter the identity crisis of the European project by rebalancing the up till now visible tension between economic competitiveness and upward social convergence.[109] In this section, we will take stock of the latest initiatives while trying to imagine the direction that the Commission might take in the years to come.

Since the beginning of the 1990s, the EU has introduced legal instruments to legitimise and regulate non-standard forms of work. In particular, some EU Directives set out the principles of equal treatment between workers with fixed-term and permanent contracts, as well as between agency workers and those employed directly by the company. These regulatory instruments also required that part-time workers should not be treated less favourably than full-time workers. Labour lawyers have conflicting views on the interpretation of this 'chapter'

of EU labour law. The objectives of the Directives are not perfectly aligned: while on the one hand, voluntary part-time work was encouraged, on the other hand, action was taken to limit abuses in the renewal of fixed-term contracts.[110] In spite of the difference in views, today, those non-standard forms of employment that are regulated at European level are considered 'the best of a bad job'.

Some critical issues have been mitigated by a compromise solution (so much so that temporary agencies, which have to meet a number of stringent financial and organisational criteria in order to operate, are alarmed by the unfair competition of digital labour platforms in their sector). One of the key limitations of this approach lies in the narrow and static personal scope of these instruments, which is inextricably linked to the existence of the employment relationship, as defined by the CJEU's case law.[111] Indeed, as recognised by professor Mark Bell, the risk is a stark polarisation between 'typified-atypical' workers and 'new' atypical working templates,[112] leaving too many aspects poorly regulated.[113] With a certain frustration, it must also be pointed out that after these Directives – in two cases the result of framework agreements between social partners – there has been a weakening of the momentum of social integration. The austerity programmes adopted in many EU countries during the early 2010s financial crisis and often channelled through international memorandums of understanding of dubious legal nature, have certainly not encouraged solidarity.[114]

The issue is all the more relevant if one considers that over the last 30 years, contrary to the myth about red tape imposed by the 'Brussels Eurocrats', it was also the EU that legitimised flexible formulas such as part-time, fixed-term and temporary work (and platform work, we will argue, is a peculiar combination of these models). At the time, the first reactions were harsh, and reflection on these measures has not yet been concluded. On the one hand, there are those who consider the so-called 'flexicurity' model to have failed in its implementation phase (only the flexibilisation part has been executed, to the detriment of the creation of quality jobs). On the other, there are those who recognise that atypical forms have contributed to ensuring a certain adaptability of the labour market in times of change. In any case, the 'integrated strategy' of flexicurity has only been partially realised.[115] Although the loosening of employment regulation has fostered a movement towards innovation in contractual formats, the strengthening of institutions responsible for providing unemployment benefits and facilitating transitions to new jobs has by no means counterbalanced it.

In June 2016, the Communication on the collaborative economy, a non-binding act of guidance with the aim of 'adapting and interpreting the existing regulatory framework', was published. Aware of the regulatory uncertainties that platforms have triggered, the Commission has reiterated its aim of creating a favourable environment for innovative economic initiatives and has sought to strengthen the rights and obligations of the players in this growing market. The text links the burden of prior authorisation for market access (licensing obligations or minimum quality requirements) to the nature of the activity carried out by the platform, ie to the 'underlying' service exchanged in addition to the IT service.

It is interesting to note that the Commission has identified the intensity of the 'influence' on the key terms and conditions of the service rendered and, more importantly, on the workers themselves as a key criterion for the classification as a service provider. In many legal systems, control is also a paramount criterion in the traditional assessment of the existence of the subordination of workers and, thus, of an employment relationship. It is, therefore, the addition of a classical employment law component into the toolbox of administrative and competition law.[116] Crucially, it is precisely the relationship between platforms and the workers that matters. The more intensively the former 'manage and organise the selection of the providers of the underlying services and the manner in which those underlying services are carried out – for example, by directly verifying and managing the quality of such services', the less likely it is that the company will be considered a mere technological intermediary.[117]

Addressing the question of worker classification, the Communication makes it clear that the existence of an employment relationship must be ascertained on a case-by-case basis, paying close attention to the manner in which the service is carried out, with regard to three cumulative indicators: 'the existence of a subordination link [something that corresponds generally to the control and economic reality tests of some common law jurisdictions]; the nature of work; and the presence of a remuneration'.[118] If the nature of the relationship between workers and platforms is key to defining the market in which they operate, the detection of an employment relationship ultimately drags platforms out of the ICT sector, removing them from the liberalised regime of the digital single market. For this reason, too, the Commission has urged Member States to assess the adequacy of their national rules.

The Parliament has repeatedly called on Member States to get ahead of the curve by modernising social security and collective bargaining legislation 'so as to stay abreast of technological developments while ensuring workers' protection'.[119] Although it contains declarations of intent on which there has been much negotiation, in some passages the parliamentary resolution seems light years ahead of the debate. First, it refers to the need to safeguard the right of workers to organise, and the right of collective bargaining and action. It then insists on a consideration that is taken for granted by labour law experts, but less so by the many, not disinterested factions, who praise the new business models: 'all workers in the [platform] economy are either employed or self-employed based on the primacy of facts and must be classified accordingly'.[120] *Tertium non datur*.

Despite some quibbles, the most concrete legislative result brought home by EU institutions is the Directive on transparent and predictable working conditions.[121] The history of this act is unusual in that it shows how the EU institutions seized the opportunity to update a Directive dating back to the 1990s to extend certain protections to new forms of work. To tell the truth, an atmosphere of excitement had surrounded this revision process, which ended up loading this instrument with expectations that were difficult to meet. Following lengthy negotiations, the final text ended up having a less than revolutionary scope. It should have been

clear from the outset that a mere recasting of an instrument that, for the most part, merely imposed information obligations on the employing entities was unlikely to offer substantial answers to the multifaceted challenges posed by the digitalisation and casualisation of European labour markets. Therefore, before judging the legal intervention as too timid, it is necessary to contextualise its scope and accept the idea that correct, complete and timely information is an essential first step to improving working conditions. In practice, the Directive aims to fill some of the 'gaps in protection [that] have emerged for new forms of employment created as a result of labour market developments' in the last 30 years.[122]

To do so, it identifies from the outset certain categories of workers in need of protection because of their particular vulnerability: domestic workers, on-call workers, intermittent workers, voucher-based workers, platform workers, trainees and apprentices. The biggest criticism involves the subjective scope of the Directive – it concerns 'every worker in the Union who has an employment contract or employment relationship as defined by the law, collective agreements or practice in force in each Member State with consideration to the case law of the Court of Justice'.[123] Those who had hoped for a new and broader definition of 'worker' were confronted with an ambiguous formula. In short, despite the inclusive intentions, the least protected workers are likely to remain outside the scope of the Directive unless their employment status is recognised by a court. Sticking to traditional notions and interpretations of employment relationships may end up leaving outside the scope of protection legions of platform workers who will still be ostensibly classified as self-employed and will have to rely en masse on litigation to secure access to the full array of labour and employment rights.[124] Yet, a broad interpretation of its protective aims could lean towards the inclusion of non-standard workers in a deliberate way.[125] Once again, in this arena it will be necessary to sharpen our legal tools, especially in view of the transposition of the Directive (Members States have until August 2022 to implement the provisions in their domestic legislations).

What kind of information is required? Businesses with an entirely or mostly unpredictable organisation are obliged to inform the employee about the workforce management model, remuneration schemes and notice periods, so as to avoid the detrimental consequences of last-minute cancellations (this information can also be transmitted digitally). These provisions design a stable availability window, outside which workers cannot be penalised for refusing to show up and within which they must be compensated if a previously agreed slot is cancelled. The Directive also imposes restrictions on the use and, significantly, the duration of on-demand contracts. It even provides for the introduction of 'a rebuttable presumption of the existence of an employment contract with a minimum amount of paid hours based on the average hours worked during a given period' (Article 11). All in all, these are measures that could also improve the working conditions of platform workers. Therefore, it is to be hoped that, in the light of such clear and non-radical objectives, the Directive will be a good candidate for an extensive interpretation, in line with the measures implemented

by governments such as in Italy and Spain and the proposed Directive on platform work.

More specifically, in October 2020, the Commission adopted its 2021 Work Programme, which includes a legislative proposal to improve the working conditions of platform workers and ensure adequate social protection.[126] Endorsed at the Social Summit in Porto on 7 and 8 May 2021, The new 2021 'EPSR Action Plan' includes two important legislative initiatives, notably on collective bargaining for autonomous workers who are in a vulnerable position, and on the working conditions of platform workers.[127] In February 2021, the Commission began consultations with the social partners in accordance with Article 154(2) of the Treaty on the Functioning of the European Union (TFEU), requesting their opinion on the direction of EU action to improve the working conditions of those working through digital labour platforms active in the EU. The second-stage consultation was launched in June 2021, requesting European social partners to submit their views on potential instruments for EU action.

In April 2021, a proposal for a Regulation on AI (AI Act) was presented.[128] AI-systems 'used in employment, workers management and access to self-employment, notably for the recruitment and selection of persons, for making decisions on promotion and termination and for task allocation, monitoring or evaluation of persons in work-related contractual relationships' are classified as high-risk, 'since those systems may appreciably impact future career prospects and livelihoods of these persons'.[129] These systems shall be subject to specific transparency and oversight requirements toward the users of the systems with the exception of non-professional persons entering into contact with the AI tool. Disappointingly, the text of the proposal specifies that the assessment of the conformity of these systems to existing rules will only be subject to an ex-ante self-evaluation by the provider, with no 'involvement of a notified body'.

Worse still, the proposed Regulation seems to take for granted that if AI systems used at work comply with the procedural requirements it sets forth, these systems should be allowed. Such an approach is deeply debatable. Several EU national legislations ban or severely limit the use of tech tools to monitor workers. The draft Regulation risks prevailing over these more restrictive frameworks and triggering a deregulating landslide in labour and industrial relations systems around Europe. While national rules often require involving the trade unions and works councils before introducing tools allowing any form of tech-enabled surveillance, the draft Regulation, instead, never specifically mentions any role of the social partners in co-regulating AI systems at work. Consequently, considering that the legal basis of the Regulation would be a liberalising one, aimed at harmonising governance standards across the EU, the more protective national legislation risks being overshadowed by this instrument that, in other words, could be functioning as a 'ceiling' rather than a 'floor' for labour protection.

In September 2021, the Parliament approved a resolution calling for a European framework to guarantee that people working for labour platforms have the same level of social protection as standard workers of the same category.[130] This set of

rights should include social security contributions, responsibility for health and safety and the right to engage in collective bargaining to negotiate fair terms and conditions. Significantly, MEPs proposed a reversal of the burden of proof on the existence of an employment relationship: in case of litigation employers should prove there is no employment relationship. Moreover, the resolution lays down the right to transparent and non-discriminatory algorithms, ensuring the possibility of challenging automated decisions and asking to keep 'humans-in-the-loop'.

In December 2021, the European Commission proposed a new Directive on improving the conditions of platform workers. This instrument would principally apply to all platform workers, including domestic workers whose work is channelled via apps and, crucially, individuals who work for online platforms. The proposal extends full labour and employment protection to all platform workers who 'have, or who based on an assessment of facts may be deemed to have, an employment contract or employment relationship as defined by the law, collective agreements or practice in force in the Member States, with consideration to the case-law of the CJEU'.[131]

The proposed Directive provides a list of criteria to determine whether the platform asserts control. They encompass the determination of remuneration or key conditions of execution, supervision and assessment of the quality of performance, restriction of the freedom to organise one's work by preventing the refusal of task or use of substitutes and the limitation of the capacity to build a client base. If the platform fulfils at least two of those conditions, it is legally presumed to be an employer.[132] It is incumbent on platforms to prove that there is no employment relationship. While a presumption does not mean reclassification is always granted, the provision could be a game-changer in how employment status will be determined in court. Indeed, the set of indicators enshrines comparative jurisprudential *acquis* from the case law of several European countries, where courts have exposed the false nature of the self-employment status of platform workers and reclassified them as fully-fledged employees. The 'familiarity' of these elements should make reaching a political consensus around the proposal and transposing the Directive much smoother.

Nonetheless, there is still much room for improvement. Arguably, the current drafting of the indicators and the fact that at least two of them should be met to trigger the presumption risks making this provision scarcely operative, particularly for those workers, including online platform workers, who already face the most significant challenges in claiming employment status. For instance, 'supervising the performance of work' should already be sufficient for reclassification, as it already is the case under many domestic legislations. One can hardly see an improvement in the fact that this supervision should merely count as one of the indicators that would trigger a rebuttable presumption.

To complicate things further, Member States have started to intervene by regulating platform-mediated working arrangements. In Spain, Italy and France, where a binary distinction between employment and self-employment still applies (although the Italian and Spanish frameworks admit intermediate solutions such

as 'quasi-subordinate' work and 'economically dependent self-employment', as we will see), policymakers have implemented diverse policy options. In Spain,[133] a specific, rebuttable presumption of the employment status for delivery riders was introduced in 2021, after a six-month process of tripartite social dialogue. Today, these riders fall within the scope of statutory labour protection, while platforms are engaged in heavy resistance, finding ways to flout the new rules.[134] Similarly, in 2015 and 2019, the Italian government expanded the full coverage of mandatory employment protection for self-employed workers whose work is organised by the principal, including through a digital platform.[135] Conversely, the 2016 French law defined a special regime: platforms must respect obligations relating to insurance and training for 'dependent' self-employed platform workers.[136] In the same vein, the 2019 French reform encouraged the adoption of codes of practice defining the rights and obligations of platform workers.

On the judicial front, platforms are embroiled in several lawsuits on the appropriate classification of workers. It is not possible to generalise specific judgments, as they are heavily fact dependent. However, while several decisions of lower instance courts produced mixed, and sometimes contradictory, outcomes, many higher courts across Europe moved towards determining the employment status of platform workers, or at least towards including them in the scope of labour protection.

Looking at the long catalogue of judicial parameters used by the courts in these judgments, some common threads emerge.[137] In particular, the idea that platform work is incompatible with employment status – a conviction that was very widespread among commentators and policymakers only a few years ago – has been thoroughly debunked in court, with arguments that also resonate with the CJEU case law.[138] Albeit unevenly, courts have refined the toolkit used to establish the existence of an employment relationship, interpreting in a modern way the classical criteria: employer's direction, organisational flexibility, economic reality, business integration, ownership of equipment and commercial risk. This has also allowed for a promising judicial dialogue both horizontally (among courts in different Member States) and vertically (between lower and higher courts within a country and at the comparative level).[139] Within this dialogue, a new social dimension could be developed that transcends domestic legal systems.[140] Domestic courts pay attention to what courts in other jurisdictions have concluded. This should not come as a surprise, seeing as in a very short time span there have been numerous judicial cases in various countries concerning the employment status of workers engaged and managed by the same multinational companies, applying analogous work conditions and replicating the same levels of business organisation.

Despite this, existing standards leave too much room for circumvention. In several jurisdictions, platform companies have reacted to negative legal outcomes by tweaking contractual terms or, more radically, refusing to comply with the relevant judgment under threat of leaving the local market.[141] Thus, it is now time to develop legislative solutions that offer more inclusive and innovative protections, not necessarily tailored to the new contractual models emerging

from digitalisation, but sufficiently flexible to offer meaningful responses for all non-standard forms of work. Before doing so, however, it is critical to avoid any misconceptions about the ability of our regulatory frameworks to keep pace with change. We will discuss this issue in the next section.

III. Labour Law between Obsolescence and Resistance

Digital tools have profoundly altered the way work is carried out, and not always to the benefit of the workers' autonomy. There are too many cases in which 'progress' and technology have let us down. In many professional environments, workers are unfortunately confronted with top-down structures, tight schedules, intrusive methods and abuses of all kinds. It is also true that, traditionally, a good deal of workplaces are not particularly known for their contribution to people's agency, empowerment and wellbeing. Human power relations are hardly ever horizontal, even between co-workers, and are often fuelled by harassment, frustration and subjugation.[142] So why would it be the fault of hegemonic algorithms and platforms if human nature already seems prone to prevarication?

As we have previously attempted to argue, be careful not to fall into the trap of accepting 'that's the way it goes' for two main reasons. First, this isn't necessarily the case. 'Heterogony of ends' is a notion first described by German psychologist Wilhem Wundt in the late nineteenth century to caution against regarding goal-directed activities and frameworks that end up shaping motivations in ways that deviate from the original aims, and backfire. Many studies account for the unintended consequences that occur in highly authoritarian contexts.[143] Most of the time, the results obtained are the opposite of those intended – arbitrary systems may be responded to by the workforce through the development of a multifaceted system of avoiding impositions and conquering freedom,[144] combined with resistance movements that can lead to sabotage,[145] through an imperceptible yet inexorable divergence from top-down instructions. Literature shows how a context that supports personal autonomy – of action, and of judgement, too – is expected to increase the workers' responsibility, to foster their motivation, as well as to nurture new skills, fostered by the possibility of experimenting and diverging from conformism.[146] It has been proven that well-designed human resource management practices, inclusive and empathetic leadership models and a stimulating work environment have a significant impact on well-being and thus on relatedness, commitment and productivity.[147] Conversely, experts point out that when an instrument of domination turns into an end in itself, it ceases to be a good metric.[148] In simpler terms, if workers are obsessed with the idea of achieving a certain short-term result, in the manner described and within the timeframe imposed, the system quickly becomes distorted and unreliable for its inventors.

The second and much more relevant reason is that attempting to associate the failures of innovation with human error does not do justice either to technological

development or to the achievements made over the centuries in mitigating the 'illiberal' structure of the employment relationship. Indeed, Hugh Collins observes that 'the contract of employment embraces an authoritarian structure that appears to be at odds with the commitment in liberal societies to values such as liberty, equal respect, and respect for privacy'.[149] The well-known analysis of Elisabeth Anderson conceptualises workplaces as undemocratic private governments.[150] Likewise, by reflecting on the workplace sovereignty of employers in the US, Gali Racabi likens their powers to those of kings.[151] It is undeniable that in the unique relationship between employers and workers authoritarian elements prevail in a one directional sense both before and during the course of the relationship – this is one of the many startling peculiarities of employment law, which makes this an exception in the field of contract law, However, various institutions, first and foremost those set forth by labour and employment regulation, have historically tried to counterbalance the dominant position of bosses and supervisors with a series of individual and collective countervailing factors.

In short, employers may exercise their prerogatives to organise, control and discipline the workforce, but in almost all legal systems they may not do so in an abusive or discriminatory manner. Process-based law is a shared trend in all EU countries' legal orders. For instance, redefining the tasks for which a worker has been hired is permitted, but regulation in many countries aims at avoiding that this results in harming their professionalism through demotion practices. Remote monitoring and data collection may be allowed, but many European countries do so only provided that works councils have been informed of the means of surveillance and that the most invasive forms of monitoring are banned. It may be lawful to unilaterally dismiss a worker, but never, at least in principle, on a whim. In most jurisdictions, the US being a conspicuous outlier here, it is essential to demonstrate that the reasons given to justify such a measure are genuine and effective or a reasonable notice of termination must be granted.

Despite the inevitable simplifications, an essential fact emerges. There is no doubt as to the allocation of powers. Most legal systems place the employers in a superior hierarchical position, legitimise their authority (which is extraordinary in a relationship between private individuals) and, at the same time, they constitutionalise and humanise it by tempering its excesses. On closer inspection, the endless discussions on the correct employment status under which to classify new work arrangements (including those mediated by digital platforms) are about this very recognition: the employment contract is a stunning organisational tool that generates an environment of efficient flexibility. The notions of control and subordination, which constitute common paramount indicators of the very existence of an employment relationship, are the 'gateway' for accessing labour rights and duties. Even before offering economic and employment security to workers, however, labour and employment regulation authorise sizeable managerial powers. In addition to this, in many industrialised countries checks and balances were put in place to avoid workplaces becoming an ecosystem bowing to the demands of the employer.

By its very nature, labour regulation has undergone major changes and does not lack adaptability. Thanks to its elastic nature, it provides instruments in line with the demands and needs of the productive system, even in highly unstable times such as the current ones.[152] Now we come to the point. A widespread awareness that employment regulation has a complex and multifaceted role is progressively emerging. This regulation is a field where contractual forces are tentatively brought to a delicate, dynamic equilibrium, in search of continuous compromises between freedom and equality, risk and solidarity, efficiency and protection. But it is also, and above all, a lens through which to observe the major transformations in society. It is therefore essential to establish a dialogue between the socio-economic reality and the existing regulatory systems, in order to test the robustness and future-proofing nature of the latter. It is here that a battle is being fought 'between the advocates of the emancipatory nature of the new organisational models and the assertors of their oppressive and commodifying character'.[153]

In this section, we focus on the resilience of labour regulation. It is worth noting that labour regulations were never aimed exclusively at workers in large vertically integrated firms. This is all the more so because the very first beneficiaries, employed in the construction or agricultural sectors, had nothing to do with blue- and white-collar workers. Labour regulation is only partially involved with industrial work, contrary to what is commonly believed. And even if those who allege the symbiosis between early twentieth-century industrial production models and social institutions were right, it would not make any sense to assume the obsolescence of labour regulation, given that many 'new' business models represent a digital revamping of very archaic schemes, typical of the proto-industrial putting-out system,[154] with one major difference: the current potential for control was unimaginable in that context.

NYU Law Professor Cinthia Estlund has observed that the hallmarks of the employment relationship, namely the possibility of dictating terms, appraising compliance and sanctioning wrongdoing, are now shared features in several professional contexts, challenging traditional assumptions that employees are preferred to external suppliers on the grounds of the wide managerial latitude afforded by this legal template.[155] The boss-worker pyramid embedded in centralised organisations is now spreading all over the labour market, without the corresponding entitlements compensating for the lack of agency that are enshrined in employment laws.[156] This power aggrandisement distorts the already weakened boundaries between legal categories. In the current discussions on the scope and extension of employment regulation, the use of digital technology as a tool to exaggerate tyrannical approaches cannot be neglected, as it can undermine the very foundations on which a broad set of protections are premised.[157]

While the canons of the classic employment relationship are being 'loosened', to borrow an expression from labour lawyer Riccardo Del Punta,[158] the possibilities of intensifying and multiplying that traditional bond of subjugation and control are increasing. Thanks to technology, the traditional parameters of work organisation are crumbling, and new highly hierarchical models are developing. While the

employment relationship is 'pronounced dead' by many tech-enthusiasts and business lobbyists, its main hierarchical features are spilling beyond the borders of employment contracts. Many of the needs for protection enshrined in the wealth of rules that have come to shape and regulate work during the twentieth century remain valid; if at all, protection must be adapted to be much more inclusive as too many workers, and particularly women and minorities, were far too often ignored in the presumed 'golden era' of labour regulation. But the need for protection is more urgent than ever today when we are witnessing the revival of organisational templates, contractual arrangements and working conditions typical of past eras. It is also possible to be at the cutting edge in a sustainable way, as we argue in the next section.

A. Regulation, Flexibility and the 'Spirit' of Innovation

In an old episode of the *Wine for Normal People* podcast, Gaia Gaja – one of Italy's most iconic wine producers – shared a revealing anecdote about the secret of her wine's long-standing success.[159] In the middle of the last century, her grandfather Giovanni was obsessed with the idea of developing a superior Barbaresco wine by using high-quality raw materials. He would spend time walking through the vineyard getting rid of imperfect grapes with his pruning shears. In a time of austerity, just after the war, this practice was perceived as a sacrilege in the eponymous village of Barbaresco, in the district of Langhe, a hilly area at the foot of the western Alps. The *mezzadri*, the independent sharecroppers who tended the lands owned by the Gajas in exchange for a percentage of the harvest, believed that it was a true crime against Nature. Giovanni, however, was so fixated with excellence that he accepted the risk of producing less to raise the quality of his wine by adopting new techniques and experimenting with innovative processes. Still, the sharecroppers were dependent on volume, since their income depended on the quantity of grapes that they could collect: the more, the better.[160] Understandably, they were sceptical about this wasteful approach. To reassure them, but also to get them to follow his instructions, Giovanni decided to hire them as employees. As a result, they could work without worrying about the harvest. More importantly, they had to tolerate the landowner's eccentricities, and do as he said – even those who probably still disagreed with him.

You are probably wondering what this has to do with platform work, labour and tech. The story of the winery, which in 2019 celebrated its first 160 years in business and is now a global benchmark, is most certainly relevant. We have not written it down whilst under the influence of Giovanni's wine (not least because we cannot afford it). His approach is one that best illustrates the spirit of innovative enterprises. The story tells us a lot about the relationship between regulation, flexibility and innovation. It is a good example of mutualising business risk, integrating the production chain, making production more efficient, investing in long-term work relationships, aligning incentives between capital and labour and, last but not

least, paying for organisational flexibility. The story of Gaja and the sharecroppers perfectly illustrates the argument we now intend to develop further.

Conventional wisdom often presents the relationship between regulation and innovation as a trade-off. However, contrary to predictions of the imminent demise of the standard employment relationship in the wake of technological disruptions and the rise of alternative business models, existing social institutions, in particular wage employment and its set of protections, can coexist well with the most advanced modernisation, even in the era of smart factories, hyper-digital systems and platform work. These long-established social institutions can act as true facilitators of innovation,[161] since they offer sustainable legal solutions to the needs of experimenting enterprises, thus easing impediments to investment and growth.

This case exemplifies a 'primordial' exchange between social protection and hierarchical organisational models. This arrangement (security in exchange for command) is crucial for companies, because it allows employers and managers to convey instructions to the workforce, to supervise their implementation and to evaluate the final result.[162] It can be seen as an essential tool for enabling rapid adjustment of production processes to new business needs or market demands, and results in a noteworthy combination of uniformity, speed and adaptability. When it comes to pursuing innovative strategies, flexibility and involvement of the workforce are indispensable – the employment relationship and employment regulation are the main vehicles that the legal systems of the vast majority of industrialised countries make available to achieve these objectives.[163] Let us together try to understand why and how.

We have been often told that the primary, if not exclusive, purpose of employment regulation is to protect workers. Certainly, strengthening the bargaining position of workers both in the market and during the relationship with their employers is a crucial objective of modern social protection. But this is a half-truth. Employment regulations have also been designed to give employers broad powers to manage labour. In legal terms, some systems label these rights 'employer powers'; in Anglo-Saxon countries they are more often indicated as 'managerial prerogatives'.[164] Painting a faithful representation of managerial authority in the lifecycle of working relationships represents a starting point when it comes to enforcing and reinforcing limits in both innovative and conventional sectors of the labour market.

Employer powers and managerial prerogatives are often taken for granted, as if they were a natural and irreversible accident. Yet they are not only the result of socio-economic factors such as the low bargaining power of workers or the ownership of the business organisation by the employer. On closer inspection, the employer's powers are legally grounded in labour regulations that incorporate positions of authority into the employment contract, in a way that is quite unique compared to other contracts.[165] These prerogatives are mainly threefold: the power to assign tasks and specify 'what needs to be performed in what order and time period' (direction);[166] the power to evaluate both the performance of such tasks and compliance with orders (supervision); and the power to sanction woefully

inadequate or negligent performance of assigned tasks or even disobedience of legitimately given instructions 'so as to elicit cooperation and enforce compliance' (discipline).[167]

Commenting on the particularities of the employment contract at common law, in an illuminating piece of writing Hugh Collins concluded that there is an 'inherent tension between the contract of employment and both respect for civil liberties and respect for equality before the law'.[168] Some of these tensions, he argued, are 'misconceived as inherent in the legal institution when they are merely contingent'.[169] Nonetheless, he found, the institution of the contract of employment is 'in some respects both illiberal and inegalitarian'.[170] Drawing on Otto Kahn-Freund, Collins distinguished between employees' submission and subordination. The first occurs when they enter into a contract of employment whose terms are dictated or almost entirely dictated by the employer and 'where there may be no reasonable alternatives to earn an income but to take this job'. Subordination, instead, corresponds to an employee's 'being subject to the hierarchical control of the employer or manager'. This is, in his words, 'a power relationship constructed by the contract of employment and supported by the law',[171] or, even better, its reason for being.

The concept of subordination is, of course, well-known in the civil law tradition as the quintessential element of the contract of employment. What renders a work arrangement a contract of employment, according to the French Court of Cassation is the 'link of subordination' between the employer and the employee.[172] The French Labour Code provides that 'working time is the time during which the employee is at the employer's disposal and complies with her directives […]'.[173] Subordination is what makes a worker an 'employee' according to the Italian Civil Code, as the Italian legal term for 'employee' is, in fact, '*lavoratore subordinato*'. The Civil Code also explicitly sanctions a hierarchical link existing between employers and their workers. Article 2086 provides that entrepreneurs are 'the heads [*capi*] of the firm and [their] collaborators hierarchically depend on [them]'. This article significantly reflects the cultural and political ideology of the fascist lawmakers who drafted the Civil Code in 1942. Although the legislation enacted during the democratic era materially 'tamed' its original intent, unlike other provisions governing the enterprise and labour relations, which were implicitly or explicitly abrogated as from the end of the fascist regime, Article 2086 is still considered to be in force. It perfectly conveys the idea of 'private government' as outlined by Elisabeth Anderson in her writings, namely the notion that authority and hierarchy sanctioned by the law can extend far beyond the State and public powers and manifest itself aggressively in the modern employment relationship.[174] Albeit Anderson primarily focuses on common law systems and particularly that of the US, the underlying power structure of the employment relationship is analogous to the one in civil law countries. In short, it is no coincidence that many legal systems refer to 'subordination' when talking about employees!

The presence of wide latitude in exercising powers at work is what traditionally distinguishes subordinate employment from self-employment in legal terms.[175]

As a reaction to the existence of these powers and as compensation for the obligations and duties that employees derive from them, in many legal systems employment regulation has gradually provided a series of safeguards and protections in favour of employees. Although this rule has slowly changed in several countries such as Spain, the UK, Canada, Austria and Italy, self-employed workers, who are not subject to the employers' powers, have not commonly received any specific legal protection.

The legally sanctioned powers of employers respond to precise economic and organisational needs of firms that were detailed by Nobel laureates in economics, Ronald Coase and Oliver Williamson. As argued above, Coase was the first to illustrate that their essential function is to enable firms to limit their costs.[176] Think of the expense, in terms of time and resources, of searching for and selecting other contractors in the market, and then finding information, negotiating terms of engagement, drafting contracts and executing them (as well as verifying the outcome). Imagine that you run a business, need workers and have to sit down and negotiate with each of them, come to an agreement and enforce it every time new work is needed, or you have to change previously established processes. It would be a permanent production paralysis, with unsustainable transaction costs. Gaja would have spent all his days discussing with the sharecroppers whether it was worth picking that unripe bunch. Firms exist (and decide to integrate vertically) in order to replace countless costly contractual transactions with hierarchical relationships that do not require them to agree, day by day, minute by minute, with their employees. There is an initial negotiation, and perhaps this is repeated periodically, but once an agreement has been reached, the parties accept that one will be able to direct the other without requiring their consent each time – an exception to general legal principle which postulates that any alterations made to a contract are invalid unless agreed upon by both parties.

Within advanced countries, the keystone on which the hierarchy that makes firms function rests, is precisely the employment relationship, an arrangement that is in itself incomplete and updatable,[177] capable of effectively synthesising a bundle of managerial powers that constitute the authority of the employer, in exchange for a promise of economic and contractual security. In a vertically integrated firm, these powers are often delegated to managers, the 'visible hand' of the entrepreneur, as economic historian Alfred Chandler called it.[178]

Giovanni Gaja decided to employ former sharecroppers as wage employees in order to pursue his own vision, but also, and above all, to be able to give detailed and binding orders on how to manage the harvest. He was looking for a contractual template that would allow for the fully-fledged exercise of managerial prerogatives. The employment contract was the perfect solution. Managerial powers allow employers to run their business and respond quickly to circumstances that could not be precisely foreseen when the contract was negotiated. In other words, they allow entrepreneurs not to have to continually obtain the consent of employees and make them vested with the authority to issue unilateral commands, within the

limits of what is reasonable and legal, to monitor workers' performances and to sanction employees who do not comply with the rules.

Subordination and the managerial prerogatives that make the employment contract a crucial element of capitalist production did not come about by chance. Rather, they stem from precise legislative interventions introduced in pre-industrial times and at the dawn of industrialisation. Simon Deakin and Gillian Morris,[179] for instance, refer in their landmark textbook to the Master and Servant Acts enacted in Britain in the nineteenth century and to legislation passed in earlier times that provided for the abatement of wages and the imprisonment of servants and labourers for 'misdemeanour, miscarriage or ill behavior'.

Absconding from and refusing to work was also criminally sanctioned and the courts issued prison sentences for breach of servants' contractual obligations, a practice enshrined in legislation, together with sanctions for embezzlement of the goods and raw materials of their masters. Master and Servant legislation was also enacted in the British colonies, becoming a consistent feature of common law jurisdictions.[180] In the US, the so-called 'Black Codes' adopted in the Southern states after the end of the Civil War disciplined African-Americans by forcing them to enter into annual labour contracts, by making vagrancy a criminal offence punishable with penal labour and perpetuating slavery-like forms of domination.[181] In civil law countries, public and criminal regulation to police the workforce were introduced since the Ancien Régime. The legislation imposing the *livret du travail*, for instance, ensured that workers could not leave their workplace in search of another occupation without the consent of their employers or before having fully repaid any wage advance or outstanding debt towards them.[182] In France, workplace regulations issued unilaterally by masters were also a crucial way of establishing private forms of disciplinary powers. In the early decades of the nineteenth century, the *conseils de prud'hommes* and the *justices de paix* – also in accordance with the Revolutionary ideals of equality among citizens – refused to enforce these regulations unless it was proved that workers had genuinely agreed with their introduction. In the second half of the century, however, the higher courts, and particularly the *Cour de Cassation*, upheld their unilateral introduction by employers, and therefore, materially sanctioned the authority of the latter over the workforce.[183]

With time, custom, and practice, this authoritarian model of enforcing contractual obligations and labour discipline of servants and labourers seeped into the common law construction of the contract of employment and the civil law notion of subordination. Deakin and Morris observed that managerial prerogatives 'do not simply result from the employer's superior bargaining power prior to the agreement'.[184] They are 'underpinned by certain legal norms that today take the form of the common law implied terms of the contract of employment', such as the employees' obligation of fidelity and obedience, 'which can be traced back in many cases to the master and servant legislation of the nineteenth century and before'.[185]

These models have long constituted the legal framework of subordinate employment and have become an integral part of regulation in every country in the world. This regulation, therefore, does much more than protect workers. First, it assigns to management the unilateral power to direct, control and regulate human labour, and thus, ultimately the body and mind activities of other human beings; at the same time, it must reconcile these almost 'seignorial' prerogatives with respect for human dignity, which is essential for safeguarding the principle of equality in a democratic society. One of the fundamental tasks of modern employment and labour law is to rationalise and limit, one might say constitutionalise, the employers' powers.[186]

Algorithmic management threatens to disempower this model, as it allows bosses to dodge legal rules limiting the extent of managerial prerogatives. This dimension of employment regulation is far too often neglected in mainstream accounts of the employment relationship, particularly in economic debates and policymaking. It is high time for a much more attentive and critical analysis of these elements to be spread beyond labour law scholarship. This was the purpose of Elizabeth Anderson's writings on private government in the US. Commenting on these writings, the historian David Bromwich summarised her arguments as a claim that 'political theory should not stop at the door of the workplace'.[187]

To two Italian lawyers, this expression inevitably suggests the notion of 'bringing the Constitution into the factories'. This was a long-held demand of the Italian labour movement since the new democratic Constitution came into force in 1948. This Constitution, a remarkably progressive one at the time of its approval, protects crucial labour and employment rights, including freedom of association and the right to strike, the right to paid holidays and a fair and just remuneration, among others. The first two decades of the new constitutional era, however, were marked by intense political and labour conflicts whose effects reverberated within workplaces. Trade union representatives and members were commonly dismissed, demoted and 'confined' in 'punitive work units'. Although these conducts violated the spirit of the Constitution, there were no adequate legal tools to react to them. The legal framework for employment was still the one devised by the fascist regime that had introduced the Civil Code, with its strong deference to entrepreneurial powers and hierarchy. Only with the coming into force in 1970 of the *Statuto dei lavoratori*, could commentators acknowledge that the 'Constitution had entered the factory'.[188]

The *Statuto* had a strong collective rights component, inspired, among others, by the US' Wagner Act. It promoted trade union activity within the workplace, it established the right to appoint workers' representatives within work units, and prohibited anti-union discrimination and other unfair labour practices, including those conflicting with the constitutional right to strike. The most ground-breaking component of the *Statuto*, however, was the protection of individual workers' rights as a means to reinforce collective rights.[189] The new legislation provided a right to be reinstated in the workplace in the case of unfair dismissal in larger workplaces (and not only in the case of discrimination, as in other countries),

a ban on arbitrary transfers to other work units, and, in the case of a demotion, a right to be reinstated to the previous post or a comparable one. A series of forms of protection of civil liberties at the workplace accompanied these provisions, including the right to freedom of speech at work, safeguards against arbitrary searches and a ban on employing armed guards to monitor workers.

Protections analogous to those of the *Statuto* have been enacted in many countries during the twentieth century and constitute an essential part of employment regulation in these systems.[190] In the last decades, however, employment and labour protection have often been criticised for being inefficient and obsolete.

Those who want to scrap employment protection should be asked how the suppression of those rights can be reconciled with a genuinely democratic society, but this would be an exercise in futility. Usually, they either do not know what employment regulation is about or do not think that the rule of law also applies at work. The pandemic offered a perfect demonstration of how business powers can be exerted cynically, without the necessary counterbalances. In dealing with the emergency, many governments first left it to the discretion of companies to decide whether to resort to remote working, presenting it in principle as a simple option and not as a compulsory practice whenever it was technically feasible. It was also left to the unilateral decision of companies to put their staff on furlough or force them to take leave and to decide whether to discontinue precarious and non-standard workers. Even when it came to identifying essential activities, the margin of choice left to businesses was very wide. In some cases, it took threats of trade union mobilisation to suspend work in many companies whose services were anything but essential. In small and medium-sized enterprises, where trade unions are often non-existent, the crisis marked an unprecedented expansion of de facto managerial powers, even when there was a risk of negative impacts on the health and safety of the workers involved and on society at large.

To conclude this section, we must refute some other clichés about the alleged inadequacy of existing legal and social institutions to respond to the changing needs of our economies. Employment regulation is often portrayed as a relic of the past. Considering how this regulation is pivotal to facilitate industrial and post-industrial forms of business production, on the one hand, and to protect democratic societies from the abuses of managerial dominance, on the other, mainstream theories must be rejected. It is an ideological hypothesis to justify any circumvention of existing protections on the pretext of their alleged inability to cope with present and future social challenges. This rhetoric is more aimed at reinstating the harshest experiences of the industrial and proto-industrial eras, providing command, control and discipline without any labour protection surrounding them.[191]

The casual and precarious nature of work arrangements is too often presented as the price to be paid for innovation, without distinguishing between those who renew their organisational models and introduce new tools to genuinely increase their productivity and those who argue that employment protection should be

dismantled to allow us to order pizza via smartphone. The unilateral flexibility of platforms to decide minute by minute whom to hire and remunerate without any guarantees is thus marketed as an indispensable tool for the corporation of the future. What's more, it is often claimed that this flexibility is matched by the workers' ability to connect and work whenever they like. As we have heard in relation to the riders of the food delivery apps or the drivers of ride-hailing platforms, the intrusive and pervasive nature of certain organisational and control practices and the low pay makes this alleged flexibility a mirage,[192] mainly aimed at avoiding the perceived burdens of labour and employment regulations.[193]

Finally, there is another 'weapon of mass distraction' that is always armed when dealing with these issues – by offering employment protections, workers will lose the ability to work whenever they want; they will have to work fixed and rigid hours. In a world where flexible forms of work, free from fixed hours and places of work, without giving up any of the protections at work exist, and where technology makes it possible to calculate to the second who will be available to do what at any given time, these statements ring out as being deeply hypocritical. There is no basis for the argument that the flexibility to decide when and if to work is radically incompatible with the employment relationship, when periods of work are characterised by exposure to the control and discipline typical of subordination. It is important to note that flexible organisational modules can comfortably coexist with the employment contract, as decades of business innovations and case law have shown.

Unfortunately, some policymakers and courts still tend to regard rigid schedules as quintessential to employment. In the US, this is how some courts established that Uber drivers were self-employed and this is what the US Department of Labour under Trump's administration claimed. In Italy, when deciding on the employment status of food-delivery riders, some courts still applied 30-year-old judicial precedents on delivery work dating back to a time when there were no GPS to monitor the exact location and speed of delivery drivers, no algorithms to assign work and no consumer ratings to assess it (and smartphones were also a long way off). This kind of attitude has started to evolve.

Judges in many European countries have changed their approach on this point: there can be subordination even without time constraints. When managerial prerogatives are exercised by means of less visible digital tools, a worker's limited flexibility in deciding whether, when and where to provide their service should not exclude the possibility of them having access to the protective regime of labour law. To give an example, the Spanish Supreme Court[194] explained that, in a digitised labour market where workplaces are decentralised, workforces fragmented and organisations networked, the notion of dependence has become flexible. It can apply when a worker's contribution is functionally integrated into the company's core business.[195]

Workers could have a considerable amount of autonomy in the deployment of the allocated task – granted by programmatic orders or by a particular mode of organisation – yet they could still be subject to 'upstream' managerial power,[196] as the experience of large amounts of people working from home has also shown.

Instead, over-reliance on arrangements that are excluded from meaningful protection can result in lower productivity growth because this model erodes firm-specific skills and decouples managerial power from protective obligations.[197]

B. Moving Towards a Universal Model of Protection for Modern Times?

It is certainly true that the standard employment relationship was assumed to be doomed too early in the academic and public debate. Years ago, labour law scholar Guy Davidov put together some excellent arguments to refute this recurrent misconception.[198] Taking up a misquote attributed to Mark Twain, the paper was entitled: 'the reports of my death are greatly exaggerated'. One can certainly reflect on the capacity of the standard employment relationship model to offer answers to the changing contingencies of today's world of work, where discontinuity and instability prevail. But the eulogy for subordinate employment has often been wrongly delivered.

Nonetheless, it is undeniable that, for several decades now, in industrialised countries all over the world, the number of 'dependent' self-employed workers has grown considerably. This phenomenon has not had one single cause. Profound changes in business models since the 1970s, as well as the mentioned tendency to 'fissurise' companies by outsourcing ever larger parts of production processes to external suppliers, while exploiting the growing technological interconnection to maintain a strong coordination of these outsourced 'fragments' of the business, have played an essential role. The growth of the service sector to the detriment of manufacturing has been equally important, accompanied by a continuous erosion – both in terms of membership and influence – of those trade union and political movements that had the most represented workers in the twentieth century industry.

The law, especially in Anglo-Saxon countries, has favoured this disintegration by creating increasing hurdles to trade union organising and action and defanging the labour movement just when it was facing new business strategies. In many industrialised countries, the years between the 1970s and 1980s represented a moment of 'escape' from subordination and labour law. It was precisely at that time that companies began to resort to self-employment arrangements that often did not correspond to genuine managerial autonomy or economic independence of the worker. The savings in direct costs, in terms of wages and social contributions, and indirect costs, in terms of regulatory protection, were enormous. Sometimes, part of the tax and social security savings was paid to workers in the form of a higher net income than would have been paid in the case of employment. Obviously, it was not only about flagrant cases of evasion, but it is undeniable that there were abuses and that administrative and judicial controls failed to contain them.

All this has greatly broadened the boundaries of the grey area between employment and self-employment,[199] without any particular protection or sufficient

strength on the side of contractors to compete and protect themselves 'with their bare hands' on the market. Not even when these workers were given more autonomy in managing their own work and schedules, and perhaps even the possibility of working for other clients, did they achieve the economic and organisational independence typical of a traditional self-employed person.

In the US, in the wake of gig economy, some commentators have proposed adopting an intermediate category of workers between employment and self-employment in order to partially shield platform workers without forcing platforms to comply with the bulk of labour law.[200] For the time being, however, nothing has been done about this,[201] except in California, where the platforms managed to get a huge 'free out of jail' card by means of a referendum.

After a landmark ruling of California Supreme Court in its *Dynamex* judgment, lawmakers passed a Bill, AB5, setting a three-pronged test to determine a worker's employment status. Businesses that seek to treat workers as independent contractors must show that: '(A) the person is free from the control and direction of the hiring entity in connection with the performance of the work, both under the contract for the performance of the work and in fact. (B) The person performs work that is outside the usual course of the hiring entity's business. (C) The person is customarily engaged in an independently established trade, occupation, or business of the same nature as that involved in the work performed'.[202] This test should, in principle, be used by courts for the purposes of applying the Californian Labor Code, the Unemployment Code and the Industrial Welfare Commission Wage Orders.[203]

After the Bill entered into force, platforms tried their best to litigate against the test, alleging that their contractors did not fall into it. They failed. In the meantime, they decided to engage in a political campaign to neutralise the impact of the new legislation. A referendum proposition – Prop 22 – was thus introduced to carve out an exemption for platforms workers from the law. During the November 2020 election, Californian voters were thus also asked to decide on adopting a 'Protect App-Based Drivers and Services Act'. The Act, aimed at excluding most platform workers from the application of the ABC test, was supported by many labour platforms, including by creating the appearance of grassroots endorsement by their workers. They invested an astounding reported $200 million on the campaign, placing ads everywhere and bombarding their users and workers with messages supporting the Proposition. They also portrayed the AB5 legislation as a lethal threat to the flexibility afforded by their business model. Californian voters approved the proposal. The investment immediately repaid itself abundantly. Uber's market value rose by 14 per cent, circa $9 billion (with a 'b') after the vote. As a result, the platform workers at issue are now classified as self-employed, with certain limited protections applying to them, including non-discrimination safeguards, a healthcare subsidy, reimbursement of some car expenses, occupational accident insurance and minimum earnings for effective working time.[204]

Unsurprisingly, the Uber CEO Dara Khosrowshahi declared: 'Going forward, you will see us more loudly advocate for new laws like Prop 22, which we believe

strike the balance between preserving the flexibility that drivers value so much, while adding protections that all gig workers deserve […] It's a priority for us to work with governments across the U.S. and the world to make this a reality'.[205] Launching a flagship white paper contributing to the European consultation on potential measures addressing platform work, the CEO said any EU regulation on platform work needed to be 'grounded in the principles drivers and couriers say are most important to them: flexibility and control over when and where they want to work'.[206] The 'independent plus' model sanctioned by Proposition 22, however, is mostly a cover up (recently, the Alameda County Superior Court ruled that it is unconstitutional, but appeals are expected). In Europe, a Prop 22-like model would only graciously concede rights that already apply to workers, including health insurance and non-discrimination, and strip them of most of the protection fought and won in court.

It ultimately boils down to an old 'third category' approach that had been advocated in the past to protect gig workers. It corresponds to a hybrid status between employment and self-employment, offering a fraction of the protection that workers would receive if they were classified as employees. This proposal is not unprecedented. Third categories, of course, vary extensively among countries, with some legal systems offering meaningful protection, as in the case of the UK, where 'workers' enjoy the right to the national minimum wage, collective labour rights, working time and non-discrimination protection. Yet, this is certainly not the case of the new Californian status. Pursuant to the new Californian model, platform workers there will still be entitled to more than ordinary independent contractors receive, it can be argued. But this is not a glass half-empty or half-full scenario.[207]

Proposals for a third category reflexively appear to be an easy solution, tailor-made for the manifold problems surfacing in the platform economy. That initial reaction, however, is tempered upon further study of the content and history of the implementation of the third category in other nations. In a paper co-authored with labour law professor Miriam A Cherry,[208] one of the authors of this book examined the experiences of other countries to learn winning strategies and regulatory fiascos. Indeed, the implementation of intermediate categories in various nations highlights both successes and problems. For instance, Canada's passage of legislation in the 1970s created a new category of 'dependent contractors' through revising the definition of 'employee' in various statutes. The practical result was to bring more workers within the scope of protection. A 'safe harbour' for workers, based on economic dependency, was introduced. The measure seems to have worked well in terms of expanding the coverage of the laws to a larger number of workers.

Contrarily, in Italy's experimentation with the in-between category, businesses were reported to be trying to take advantage of a discounted status of *quasi-subordination* to evade regulations applicable to employees. The quasi-subordinate category, in practice, created a loophole that resulted in less protection. Its adoption led to widespread arbitrage of the categories, with businesses moving employees

into a 'bogus' status in the quasi-subordinate category. Through the years, the lawmakers attempted to make the requirement for a genuine recourse to quasi-subordinate arrangements more stringent, also reducing incentives and room for arbitrage. The result, however, was increased litigation and huge legal uncertainty, so that, since 2015, the lawmakers have started to significantly roll back quasi-subordination. In particular, the new law provided that all workers whose work is organised by the other party (basically all the quasi-subordinate) should be covered by labour and employment protection, unless a collective agreement signed by the most representative unions provides otherwise. After some initial discussion in lower courts, and some legislative adjustments, most Italian judges, including the Supreme Court, now deem that food-delivery riders fall under this legislation,[209] however the platforms' attempts to dodge its application are not over.[210]

Spain provides another notable example of a legal system that adopted a third category, but only for a very few workers. The law assumes that workers predominantly working for one business are economically dependent self-employed. Looking at the reasons for the limited use of this category, it comes down to a heavy burden of requirements to be met, including the use of a rigorous economic threshold. Germany's category of employee-like persons requires that workers rely predominantly on another entity for their total income, the need for social protection comparable to an employee and the personal nature of work performed on the basis of a contract for services (without staff). Both the Spanish and German cases arguably leave a great deal to be desired. Recent comparative studies have shown that the introduction of these intermediate categories has not sufficiently protected all workers in need of this protection.[211]

Adding a new category, among other things, expands the possibility for 'legal status shopping', thus shifting the grey zone between employment and self-employment somewhere else, without erasing it. This could also lead to an increase in the complexity of litigation, since there are disputes over the boundaries between three categories instead of two. In the UK it took going to the Supreme Court to have a final judgment ruling that Uber drivers fit the 'worker' intermediate category.[212] A few critical points also remain unresolved. Self-employed workers, including those who are in intermediate categories, often remain excluded from fundamental rights such as the prohibition of discrimination and trade union rights, which – also at European level – are de facto significantly restricted for those who are not subordinate.[213] In various countries, including Italy, France and the UK, different proposals have been proposed to make some fundamental labour protections universal, by trade unions and scholars close to the labour movement.[214]

A particularly important proposal was presented, at the international level, by the Global Commission on the Future of Work of the International Labour Organisation. The ILO is a specialised United Nations agency dealing with labour and is managed, uniquely among large international organisations, by 'tripartite' bodies made up of representatives of national governments, trade unions and employers' associations from around the world. In 2019, the ILO celebrated its

centenary, having been established in 1919 by the Treaty of Versailles that ended World War I, on the consideration that 'universal and lasting peace can be established only if it is based upon social justice'. On the occasion of the centenary, the ILO decided to convene a Global Commission of 27 independent experts from academia, business and labour and from different geographical backgrounds.[215] The commission was mandated to formulate proposals to guide the work of the ILO during its second century. Among these, the Commission suggested the adoption of a Universal Labour Guarantee (ULG).

The ULG would encompass, first and foremost, the Fundamental Principles and Rights at Work that the ILO already considers universal and valid for all workers without distinction between the employees and the self-employed: freedom of association and the right to collective bargaining, elimination of forced labour, abolition of child labour and elimination of discrimination at work. The pursuit of these goals is already mandatory for all ILO Member States. The ULG would add to these universal rights the protection of occupational health and safety and the guarantee of 'limits on hours of work' and 'an adequate living wage'. For the Commission, these rights should be guaranteed regardless of employment status and would therefore also cover the self-employed. For the time being, the ILO has very loosely accepted the recommendation made by its independent experts. The Future of Work Initiative culminated in the adoption of the ILO Declaration for the Future of Work in 2019. The Declaration largely followed the path set out by the Global Commission, although it did not expressly endorse some of its most forward-looking proposals, including the Universal Labour Guarantee.[216] The very fact that it is being discussed, however, is a significant step forward in the debate on the future of work.

It is increasingly clear that international labour law can no longer protect only employees. In 2019, in adopting a landmark Convention against violence and harassment in the world of work, delegates of Member States, trade unions and employers at the ILO agreed that all workers, including the self-employed but also volunteers, those who have lost their jobs and those seeking them, should be protected against violent and harassing conducts. The universalism of certain protections is therefore progressively more central to labour discussions.

In this regard, a few years ago labour lawyers Mark Freedland and Nicola Countouris proposed a sort of 'Copernican revolution' in labour law. Instead of chiselling away at the boundaries between employment, self-employment and intermediate categories, labour law should protect everyone who predominantly 'works personally'.[217] All workers, regardless of employment status, should be protected unless they themselves employ other people or have the means, capital and customers to make them de facto small businesses. This proposal, recently supported by one of the authors of this book, acknowledges once and for all that the need for protection does not only concern workers in an employment relationship. And it acknowledges the fact that new technologies are blurring the line between employment and self-employment, allowing companies to expand their managerial prerogatives, including through software and algorithms, far beyond the notion of formal employment.

This is, of course, a sweeping and far-reaching idea that would require time and adjustment, including through collective bargaining. However, it would have the merit of overturning the current protective paradigm based on the burden to prove, often with insurmountable practical difficulties, that one is an employee rather than a self-employed person, with all the uncertainties that this entails. Moving in this direction would certainly mean a revision of the traditional legal categories. But, on closer inspection, the practical results might not be so distant from covering all limb (b) workers under employment and labour law from day one in the UK, a proposal endorsed by the Labour Party,[218] or from genuinely and evenly applying the 2015 reform on quasi-subordination in Italy that extends labour protection to all self-employed persons whose performance is organised by the principal. It would, however, be a more transparent and clearer way of extending labour and employment rights making amends for the fact too many self-employed workers have, until now, almost always been deliberately left without effective protection. It could also contribute to going beyond hierarchical relationships, introducing new models to empower organisations and involving workers in decision-making. A much needed overcoming of strict hierarchy schemes in the world of work, though, is totally unrealistic if the key criterion for the attribution of rights remains the concept of subordination.

The fact that an increasingly large segment of the non-waged workforce is deserving and in need of protection has emerged dramatically during the pandemic. Both in the US and in many European countries, lawmakers have adopted partial support measures for the self-employed. Measures have included cash payments to the self-employed such as the Self-Employment Income Support Scheme (SEISS) in the UK, extension of unemployment benefits, income subsidies and tax and mortgage breaks.[219] Sometimes these measures included casual and platform workers, with income-replacement schemes no longer dependent upon the existence of a standard employment relationship. Too often, however, despite the attempt to extend the social safety net beyond the boundaries of employment, these workers fell through the cracks of protection.[220] Hopefully, this partial inclusion of the self-employed in protective schemes will not vanish at the end of the current crisis, but instead be extended and become part of the structure, correcting the distortions and limitations that marked the emergency measures. The need to protect these workers is anything but contingent. It is therefore a positive thing that action was taken in their favour during the health emergency, but it must be understood once and for all that a new fundamental equilibrium is sorely needed in the direction of greater protection for all workers.

C. The Big Family of Non-Standard Forms of Employment

One of the most stubborn clichés circulating about platform work is the idea that it can be considered an entirely novel phenomenon, to be addressed with radical regulatory paradigm shifts. Without mincing words, this is not the case, much to the chagrin of pundits. Platform-mediated work is not significantly different

from other forms of non-standard work that have gained prominence over the past 40 years.[221]

The term 'non-standard work' refers to the large family of jobs that depart from the standard employment relationship (SER). The SER is the form of work that is still the most common in the industrialised world, defined as full-time, permanent employment with a formal, direct relationship between the worker and the employer.[222] Non-standard work 'deviates' along several axes (temporal, spatial, degree of protection) from this form of work around which most employment rights and labour protection have been built.[223] Almost everywhere, the core of labour and employment protection as well as social security have been primarily designed around a prototype of worker and from a very gendered perspective.[224] Historically, the model of full-time work was mainly linked to a 'male breadwinner' model. This breadwinner was responsible for bringing home the wages, while women's work was often relegated to a secondary protective model (eg, homework) or was excluded from protection altogether (eg, unpaid care work).

Back to the future? It has been questioned whether 'organizing work in standard, hierarchical employment relations and internal labor markets in the post–World War II period may have been more of an historical irregularity than is the use of nonstandard employment relations'.[225] Turning to statistics, half of all new jobs created in the last decade have been non-standard, while over 25 per cent of the EU-28 workforce is engaged in casual and atypical forms of work.[226] In recent decades, non-standard work in industrialised countries has grown significantly not only in numbers but also in public perception. In the US the percentage of workers engaged in alternative arrangements – such as contractors, temporary agency workers, and on-call and gig workers – rose from 10.1 per cent in 2005 to 15.8 per cent in 2015.[227] Non-standard work now makes up around one in three jobs in OECD countries and 40 per cent in the European Union.[228]

The issue of 'precariousness' of non-standard workers has been at the heart of the debate about employment and labour issues for years. It is precisely for this reason that those most familiar with the evolution of the world of work in recent decades can barely keep their cool when non-standard work arrangements are presented as 'new' forms of work. Incidentally, we prefer the term 'non-standard work' to 'precarious work'.[229] First, not all non-standard forms of work are precarious. Workers who want to devote part of their time to other activities may, for example, prefer a part-time contract, as long as it has stable hours and decent remuneration (unfortunately, in most industrialised countries, this form is increasingly rare: much more frequent is an involuntary part-time model, where people work part-time not by choice, but due to lack of full-time opportunities, sometimes even working two or more part-time jobs). More importantly, precarious work extends a long way beyond non-standard work. Even permanent and full-time employment can be unstable and insecure, afflicted by low wages, unhealthy working environments, working hours not reconcilable with private life, lack of trade union protection and limited access to credit.

In this respect, yet another false myth should be dispelled. That is, the one that pits so-called 'insiders' (presumed to be 'protected', usually identified with anyone with a standard employment contract) against 'outsiders' (those excluded from the world of permanent, full-time work).[230] It is not as simple as it seems: precarious employment involves large amounts of standard employment. The insider-outsider distinction is, simply, a hallucination. On top of this, and somehow contradictorily, literature has supported the idea that non-standard forms of employment might result in a 'win-win' situation for workers and businesses. Conversely, research shows that the disadvantages seem to dominate for the workers, and particularly for already vulnerable groups, such as young workers, women with childcare responsibilities or migrants.[231] These arrangements transfer the costs of training, skill acquisition and capital investment, and the risks of variations in demand from employer to employee and welfare systems.[232]

What exactly is non-standard work? There are many possible classifications. We rely on the one adopted by the International Labour Office – the secretariat of the ILO, in a 2016 report – as a result of an in-depth discussion with experts selected by trade union movements, business associations and governments from all around the world.[233] The Office identified four macro-forms of non-standard work. First, temporary work, which includes all fixed-term work, including jobs for a given period of time, contracts for the completion of a particular project, and seasonal work (especially in the tourism, agriculture and food sectors). These jobs can be either long or short term, in the latter case they take the form of casual work or daily work, still prevalent in the economies of the global South, but certainly not unknown in other latitudes, especially in the countryside, in retail and in the hospitality sector.[234]

The ILO report also included part-time work in the list of non-standard arrangements; here people work less hours than average. This is the most stable form of part-time work and the one that is most compatible with other work and non-work activities. Part-time is said to be voluntary if it is the worker who chooses a reduced schedule, involuntary when it is due to the absence of full-time job offers. Among those workers in the EU employed part-time in 2017, over a quarter (26.4 per cent) did not voluntarily choose this working pattern. The highest shares of involuntary part-time work across the EU were recorded in Greece (70.2 per cent of part-time workers) and Cyprus (67.4 per cent), followed by Italy (62.5 per cent), Spain (61.1 per cent), Bulgaria (58.7 per cent), Romania (55.8 per cent), Portugal (47.5 per cent) and France (43.1 per cent).[235] Involuntary part-time work can lead to a permanent condition of underemployment, where workers spend as much time looking for jobs as they do working for pay.

The ILO also considers so-called marginal part-time as part-time work. In marginal part-time work, one does not know in advance if and when they will work because the employer reserves the right to call (and pay) the worker only if and when they are sure to use them (in Ireland, these types of arrangements were called 'if and when' contracts for a reason). These forms of work, somewhere between part-time and the most casual forms of temporary work,

are increasingly widespread in industrialised countries and often have evocative names such as zero-hours contracts in the UK (meaning that the employer gives no guarantee of calling the worker), on-demand work in the Netherlands or on-call work in Germany (where they are often a specific form of the better known 'mini-jobs', a primary source of income for many households).[236] In Italy the terms 'on-call' or 'intermittent' work have been in use (but there have been many forms of work designed to offer the employer maximum flexibility in calling and paying the worker on an 'if and when' basis, such as voucher-based work). In the UK, an overview of statistics reveals that 30 per cent of the people who are on temporary contracts would rather have a permanent arrangement and regular work; a percentage close to 50 per cent among those on zero-hour contracts.[237]

Then there is 'multi-party' employment. This is how the ILO identifies those forms of work in which the worker's activity is directed or used wholly or partly by someone other than their employer, breaking the standard 'bilaterality' of employment contracts. It includes first and foremost agency work, a scheme in which an agency hires a worker and sends them 'on mission' to a user firm, which pays the cost of the work and a fee to the agency. But the category also includes subcontracting, franchising or other forms of supply-chains arrangements whereby increasingly larger parts of the business cycle are outsourced to other entities. Very often, however, principals are able to impose meticulous compliance with their own production standards and lowest-cost contractual conditions. In these cases, the workers of the subcontractor can end up paying the price of lower wages and unsatisfactory working conditions without being able to bargain directly with the 'lead' firm. In industrialised countries, the most unfavourable consequences of these labour-brokering practices are often found in the logistics and hospitality sectors and in the agri-food industry.

In addition, the grey area between employment and self-employment is becoming increasingly wide. Freelancers used to be knights without a fixed master who were free to offer their services to the highest bidder (their 'lance', therefore, was 'free').[238] Similarly, self-employment can be a liberating choice for those who want to avoid the constraints of subordination and are able to compete on the relevant market independently. For many self-employed workers, however, this is not the case. Principals impose the nominally 'self-employed' format in order to save on labour costs – which are much lower in terms of protection and expenses than in the case of employment – in the face of time or hierarchical constraints that are completely incompatible with the independence of true self-employment.[239] This is what is referred to as 'bogus' self-employment. Think of the many 'independent contractors' who do exactly the same job as people engaged as employees in comparable situations, and costing so much less in social security and taxation terms as well as in labour protection (no minimum wages, overtime, paid holidays etc).[240] The last form of non-standard work is 'dependent self-employment'. In this format, although some of the typical features of subordination, such as a strong power of direction on the part of the employer or a fixed compensation

and hours, can be lacking, freelancers here are dependent on one or very few clients and have no independent access to the market. Thus, they are much more dependent on clients than traditional self-employed workers.[241] Many of the workers in the intermediate categories discussed in the previous section fall under this definition.

Why are we discussing these classifications? To explain how much platform work has in common with all these arrangements. The resemblance to temporary and casual work, as well as to some forms of 'marginal' part-time and on-demand work, is obvious; platform work is often carried out for short or very short periods (even a few minutes) with no guarantee of being offered new work at the end of each task.[242] The similarities with 'multi-party' employment should also not be overlooked. In fact, platforms play a very similar role to employment agencies.[243] Intermediaries operate within both remote and location-based work platforms. They may organise the supply and demand for specific jobs and even the execution of these jobs on behalf of other clients, who may be inexperienced in crowdwork operations, or they may provide workers with the means for the execution of the service, typically cars in transport services, in exchange for a percentage of the fees. In fact, the Parliamentary Resolution on a European Agenda for the collaborative economy stated that 'many intermediating online platforms' are 'structurally similar to temporary work agencies'.[244] All this obviously complicates the legal framework as well as the prospects for transparency and protection of workers and, in the event of a dispute, makes it even more difficult to correctly ascribe obligations and responsibilities. It can also pave the way to material abuses, as happened with some platforms in Italy and Spain.[245]

It is important to reflect on how platform work often falls into the grey area between employment and self-employment. Almost all platform workers are classified as self-employed by the platforms, who also exploit the fallacy under which these forms of work are perceived as 'amateurish' in nature. The reality, however, is much more intricate, given the inherent diversity of platform work, which can be regarded as anything but a homogeneous legal category. This is also due to the presence, alongside genuinely autonomous forms of work, of cases in which work autonomy is, quite simply, imaginary.

It is clear, therefore, that platform work is not a new phenomenon, nor is it unrelated to other consolidated trends. These include the erosion of standard employment, the reduction in the duration of jobs, but also the rise of intricate subcontracting and 'fissuring' schemes, or the increasing casualisation of work arrangements and the broadening of the grey area between self-employment and employment.

The analysis of platform work must therefore take into account what we already know about other non-standard forms of work. The ILO reports that although these can sometimes be 'stepping stones' to more stable contracts and better working conditions, this is by no means automatic. Adequate regulation is essential to prevent non-standard work from 'trapping' particularly the most vulnerable groups of workers – women, young people, migrants and the elderly – in a 'dead

end' of short-term jobs and poor opportunities.[246] All too often, people tend to approach work and frame reforms with an eye only on the number of employed people (a figure often 'adulterated' by arbitrary classifications), forgetting that a functioning labour market is not only one that employs more people but also one that employs them meaningfully. Alarmed by the numbers of the unemployed and of the persons outside the labour force (those not even looking for a job), national governments, often pushed by international institutions such as the World Bank and the International Monetary Fund, have manifestly favoured quantity over quality of work, facilitating recourse to some non-standard forms of work, without worrying too much about what this entails in terms of the quality of work and its conditions.

Of course, the picture of non-standard work is not entirely grim: it can respond to genuine flexibility needs of workers and firms.[247] But it cannot be ignored that non-standard workers suffer from a substantial gap in protections and rights compared to others: lower wages for the same tasks, despite all prohibitions and non-discrimination principles, a dearth of opportunities for training and career development and poorer occupational health and safety standards. In addition, they have limited access to the protection of their rights through collective bargaining, which is sometimes also linked to the mistrust of the standard workforce towards temporary and contingent workers and the traditional difficulty of trade unions in dealing with them. Nevertheless, the obstacles to unionisation are also of a regulatory nature (in certain countries, anti-trust regulation does not allow the self-employed to unionise; the European Union institutions themselves, as we shall see, have a contradictory view on the matter). Many obstacles stem from the fear of those who have a temporary contract (be it short or long) joining a union or striking for fear of not having their contract renewed when it expires. These critical issues also affect platform work. The threat of unrest is stifled by companies using anti-union shutdowns or antitrust lawsuits.

In many continental European countries, over the last two decades lawmakers have progressively removed certain restrictions on the use of fixed-term and agency work. In particular, the obligation to provide objective reasons justifying why these contracts are entered into instead of resorting to standard employment has been, in alternating phases, severely limited or eliminated. It has not been considered, however, that removing these constraints would have encouraged firms to meet their needs, even permanent ones, by increasingly resorting to temporary work. This is why we cannot pretend to ignore the fact that reliable regulation has a strong impact in shaping the behaviour of companies.

Nor can it be ignored that once the regulation of non-standard arrangements is loosened, it is extremely difficulty to re-regulate them, by increasing the protection for workers, as firms adjust their business models to the new deregulated reality and, as a consequence, this reality becomes irreversible. To give an example, in 2018 the Italian government introduced a mild measure to re-regulate temporary work, which brought the regulation of these arrangements back to the level of protection of comparable countries such as France and, more recently, Spain

thanks to the labour-market reform agreed among government, the trade unions and employers.[248] The new rules were felt as an unacceptable imposition by a very vocal part of the Italian business world. Many commentators focused only on how many workers would hypothetically be left out in the cold because of the new legislation. The same charade was performed some years earlier when voucher-based work schemes were restricted, after previous reforms had blown their use out of proportion to their original purpose and to international best practices, whereby vouchers are only used for domestic work and odd jobs. Despite non-standard work routinely making headlines, few ever question the quality of these jobs in terms of wages, protection and opportunities.

All eyes are focused on the number of people employed, while the analysis of working conditions is constantly postponed. The same, unfortunately, happens with platform work. Opinion leaders present every regulatory intervention as an aggravation that will only lead to the reduction of jobs or, to 'undeclared work', as if undeclared work were a legitimate option and not a practice to be addressed with more resources to support the activities of labour inspectorates, which are often underfunded and understaffed. We believe, instead, that this entrenched downward spiral of working conditions and protection should be reversed, rather than resigning ourselves to sacrificing every regulatory possibility on the altar of the number of people employed. In the final chapter this book proposes a new map for the era of radical digital advancements.

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and relaxed notion of subordination, which 'does not require an employer to be constantly watching over the shoulders of a worker'. ibid at para 96.

[124] CJEU, Case C-692/19 *B v Yodel Delivery Network Ltd* [2020] EU:C:2020:288 (adopting a rather formalistic approach, without going far enough so as to provide useful elements to update the classical analysis of the existence of an employment relationship).

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[135] Law No. 128/2019 amending Decree 101/2019 on urgent measures for the protection of work.

[136] Law 2016-1088 (8/8/2016) on labour, the modernisation of social dialogue and securing of professional careers. See new Article L. 7341-1 and Article L. 7342-1 of the French Labour Code. See B Palli, 'Regulation of Platform Work in France: From Voluntary Charters to Sector-Wide Collective agreements?', *Mutual Learning Programme, DG Employment, Social Affairs and Inclusion* (European Commission, 2020).

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[138] Case C-256/01 *Debra Allonby v Accrington & Rossendale College* [2004] ICR 1328; Case C 413/13 *FNV Kunsten Informatie en Media v Staat der Nederlanden* [2014] EU:C:2014:2411.

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[211] See also the contributions on Austria, Germany, Italy, Spain and the UK published in the special issue of the (2019) 10(3) *European Labour Law Journal*. For an update, see C Schubert, *Economically-dependent Workers as Part of a Decent Economy: International, European and Comparative Perspective* (Munich, C.H. Beck, 2021).

[212] See also A Bogg, 'For Whom the Bell Tolls: "Contract" in the Gig Economy' (Oxford Human Rights Hub, 7 March 2021) https://ohrh.law.ox.ac.uk/for-whom-the-bell-tolls-contract-in-the-gig-economy/.

[213] J Kenner, 'Uber Drivers Are "Workers" – The Expanding Scope of the 'Worker' Concept in the UK's Gig Economy' in J Kenner, I Florczak and M Otto (eds), *Precarious Work. The Challenge for Labour Law in Europe* (Cheltenham, Edward Elgar Publishing, 2019).

[214] In Italy: CGIL, 'Carta dei Diritti Universali del lavoro' (2016). In France: E Dockès (ed), 'Proposition de code du travail' (Paris, Dalloz, 2017). In the UK: K Ewing, Lord J Hendy QC and C Jones, 'A Manifesto for Labour Law: towards a comprehensive revision of workers' rights' (Liverpool, Institute for Employment Rights, 2016).

[215] The paramount objective of providing decent work for all and ensuring a 'human-centred approach' in the digital age has been at the core of the ILO's Future of Work Initiative – a major project launched to mark the centenary of the Organisation (2019). ILO, Report of the Director-General, Report I The Future of Work Centenary Initiative, International Labour Conference, 104th Session, Geneva, 2015, www.ilo.org/wcmsp5/groups/public/---ed_norm/---relconf/documents/meetingdocument/wcms_369026.pdf. ILO Global Commission on the Future of Work, Work for a brighter future (Ginevra, ILO, 2019).

[216] Crucially, the right to occupational health and safety (OSH) at the workplace has not yet been elevated to the rank of fundamental principles and rights at work. The guarantee of an adequate *minimum* wage has been enshrined, instead of the *living* wage suggested by the Commission. Moreover, the Declaration does not broach the idea of expanding working time sovereignty, but instead restates the need to enforce maximum limits on working time. Even if the express formulation 'regardless of their employment status or contractual arrangements' was rejected, opposed among others by the government members of the EU Member States, the Declaration calls to strengthen and expand protection for 'all workers'. Report of the Committee of the Whole: Summary of Proceedings, ILC108-PR6B(Rev.) www.ilo.org/wcmsp5/groups/public/---ed_norm/---relconf/documents/meetingdocument/wcms_711582.pdf, para 1133. See N Potocka-Sionek and A Aloisi, '"*Festina Lente*": the ILO and EU agendas on the digital transformation of work' (2021) 37(1) *International Journal of Comparative Labour Law and Industrial Relations* 35–64.

[217] M Freedland and N Countouris, *The Legal Construction of Personal Work Relations* (Oxford, Oxford University Press, 2011). One of the authors of this book recently wrote in support of this idea: N Countouris and V De Stefano, *New Trade Union Strategies for New Forms of Employment* (Brussels, ETUC, 2019).

[218] See https://bills.parliament.uk/bills/2876.

[219] D Mangan, E Gramano and M Kullmann, 'An unprecedented social solidarity stress test' (2020) 11(3) *European Labour Law Journal* 247–75.

[220] OECD, *Supporting livelihoods during the COVID-19 crisis: Closing the gaps in safety nets* (Paris, OECD Publishing, 2020).

[221] S Garben, *Protecting Workers in the Online Platform Economy: An overview of regulatory and policy developments in the EU*, European Risk Observatory Discussion paper (2017). See also MJ Walton 'The shifting nature of work and its implications' (2016) 45(2) *Industrial Law Journal* 111–30.

[222] 58% of the workforce in the EU is in indefinite full-time employment.

[223] ACL Davies, *Regulating Atypical Work: Beyond Equality* in N Countouris and M Freedland (eds), *Resocialising Europe in a Time of Crisis* (Cambridge, Cambridge University Press, 2013) 230–49.

[224] J Fudge and R Owens, *Precarious Work, Women, and the New Economy: The Challenge to Legal Norms* (Oxford, Oxford University Press, 2006). See also LF Vosko, *Managing the Margins: Gender, Citizenship, and the International Regulation of Precarious Employment* (Oxford, Oxford University Press, 2009).

[225] AL Kalleberg, 'Nonstandard Employment Relations: Part-Time, Temporary and Contract Work' (2000) 26(1) *Annual Review of Sociology* 341–65. See also T Piketty, *Capital and Ideology* (Cambridge:

Harvard University Press, 2020); Stone and Arthurs (n 184). See also P Doeringer and M Piore, *Internal Labor Markets and Manpower Analysis* (Armonk, ME Sharpe, 1971).

[226] C Barnard and D Georgiou, 'EU Developments in the Labour & Social Field: Jurisprudential and Regulatory Responses to the Digitalisation of Work' in M De Vos (ed), *Technological Disruption in Labour and Employment Law* (Cambridge, Cambridge University Press, 2022).

[227] LF Katz and AB Krueger, *The rise and nature of alternative work arrangements in the United States, 1995–2015* (NBER Working Paper, No. 22667, 2016).

[228] OECD, *In It Together: Why Less Inequality Benefits All* (Paris, OECD Publishing, 2015).

[229] N Countouris, 'The legal determinants of precariousness in personal work relations: A European perspective' (2012) 34(1) *Comparative Labor Law & Policy Journal* 21–46.

[230] A Lindbeck and DJ Snower, 'Insiders versus outsiders' (2001) 15(1) *Journal of Economic Perspectives* 165–88. J Lindvall J and D Rueda, 'The Insider-Outsider Dilemma' (2014) 44(2) *British Journal of Political Science* 460–75.

[231] S Fredman, 'Women at work: The broken promise of flexicurity' (2004) 33(4) *Industrial Law Journal* 299–319.

[232] K Purcell, 'Changing Boundaries in Employment and Organizations' in K Purcell (ed), *Changing Boundaries in Employment* (Westbury-on-Trym, Bristol Academic, 2000).

[233] International Labour Office, *Non-standard employment around the world: Understanding challenges, shaping prospects* (Geneva, ILO, 2016).

[234] JR Henly, HL Shaefer and E Waxman, 'Nonstandard Work Schedules: Employer- and Employee-Driven Flexibility in Retail Jobs' (2006) 80(4) *The Social Service Review* 609–34.

[235] See https://ec.europa.eu/eurostat/web/products-eurostat-news/-/DDN-20180608-1.

[236] O Nachtwey, *Germany's Hidden Crisis: Social Decline in the Heart of Europe* (London, Verso, 2018).

[237] R Partington, 'More Regular Work Wanted by Almost Half Those on Zero-Hours' *The Guardian* (3 October 2018) www.theguardian.com/uk-news/2018/oct/03/regular-secure-work-wanted-by-almost-half-on-zero-hours-contracts-flexible-gig-economy.

[238] A Burke (ed), *The Handbook of Research on Freelancing and Self-employment* (Dublin, Senate Hall, 2015). M Del Conte and E Gramano, 'Looking to the other side of the bench: The new legal status of independent contractors under the Italian legal system' (2017) 39(3) *Comparative Labor Law & Policy Journal* 579–606.

[239] H Collins H, 'Independent contractors and the challenge of vertical disintegration to employment protection laws' (1990) 10(3) *Oxford Journal of Legal Studies* 356–60.

[240] A Thörnquist, 'False Self-Employment and Other Precarious Forms of Employment in the "Grey Area" of the Labour Market' (2015) 31(4) *International Journal of Comparative Labour Law and Industrial Relations* 411–29.

[241] F Rosioru, 'Legal Acknowledgement of the Category of Economically Dependent Workers' (2014) 5(3–4) *European Labour Law Journal* 279–305.

[242] Garben (n 221).

[243] M Wouters, 'International labour standards and platform work: an analysis based on the instruments on private employment agencies, home work and domestic work' (Doctoral dissertation, KU Leuven, 2021).

[244] L Ratti, 'Online Platforms and Crowdwork in Europe: A Two-Step Approach to Expanding Agency Work Provisions' (2016) 38(2) *Comparative Labor Law & Policy Journal* 477–511. J Prassl and M Risak, 'Uber, Taskrabbit, and Co.: platforms as employers? Rethinking the legal analysis of crowdwork' (2016) 37(3) *Comparative Labor Law & Policy Journal* 604–19.

[245] In May 2020, the Tribunal of Milan placed Uber Eats Italy under special administration over alleged criminal gangmastering offences. The company's food delivery business was alleged to have been using small firms to recruit vulnerable workers, through practices that have been associated with unlawful labour intermediation and exploitation. The company had to spend several months in this special administration to roll back the contested practices. E Allaby, 'The rise of Uber Eats gang masters is tearing the gig economy apart' (*Vice*, 15 February 2021) www.wired.co.uk/article/uber-eats-italy.

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[247] E Armano, A Bove and A Murgia, *Mapping Precariousness, Labour Insecurity and Uncertain Livelihoods: Subjectivities and Resistance* (London, Routledge, 2017).

[248] A Aranguiz, 'Spain's labour reform: less transience, more balance' (*Social Europe*, 6 January 2022) https://socialeurope.eu/spains-labour-reform-less-temporary-work-more-balance.